IT SUPPLIER AGREEMENT

THIS AGREEMENT made as of • ("**Effective Date**")

BETWEEN:

The Corporation of the City of Mississauga ("**City**")
– AND –
[Insert Supplier's Full Legal Name] ("**Supplier**")

RECITALS:

(a) On **[insert date that RFx was issued]** , City issued the following Bid Request: Online Submission Management Software;

(b) On or about **[insert date that Supplier response was received]** Supplier submitted a Bid;

(c) Supplier was selected as the highest Bidder whose Bid has been accepted by City "Successful Bidder"); and

(d) Supplier is engaged in the business of providing the Work and represents that it has the skill, knowledge and resources to provide the Work.

In consideration of their respective covenants and agreements contained in this Agreement, and other good and valuable consideration, the Parties agree as follows:

1. DEFINITIONS

(i) Whenever used in this Agreement, the following words have the following meanings:

"Accessibility Policy" has the meaning given to it in Section 29(ii) (Accessibility);

"Affiliate" as to any Person means any other Person that directly, or indirectly through one or more intermediaries controls, or is controlled by, or is under common control with, such Person;

"Agreement" means this IT Supplier Agreement including the Schedules hereto and the documents listed in Section 2(i) (Order of Precedence);

"Applicable Law(s)" means all applicable statutes, laws, by-laws, regulations, requirements, ordinances, notices, rulings, orders, directives, policies and controls of the municipal, provincial, and federal governments and any other lawful authority and all court orders, judgments and declarations of a court of competent jurisdiction

"Bid" means Supplier's proposal, offer or submission received in response to a Bid Request;

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“Bidder(s)” means any legal entity submitting a Bid;

“Bid Request” means a solicitation from City to potential Bidders to submit a Bid;

“Breach” is any inadvertent, unauthorized, and/or unlawful access, acquisition, corruption, disclosure, destruction, alteration, loss, misuse, processing, use, transfer, sale, rental or damage of Personal Information or any other Confidential Information of City, any compromise of the safeguards that Supplier is required to implement pursuant to this Agreement, any other act or omission that compromises the security, confidentiality, or integrity of Personal Information or Confidential Information, or any other breach of the confidentiality or privacy obligations hereunder;

“Business Day(s)” means any day other than a Saturday, Sunday, public holiday or other day on which banks in Ontario are authorized or required by Applicable Laws to be closed or any other day on which the administrative offices of City are closed;

"Business Hours" means between 8:00 a.m. and 6:00 p.m. (local time in Mississauga, Ontario) on a Business Day;

"Business Records" means a record in the custody or control of Supplier (or its Representatives) that relates to this Agreement or the Work provided pursuant to it and meets at least one of the following criteria: (i) is reasonably necessary to support the charges set out in any invoice issued pursuant to this Agreement (for example, timesheets, accounts, receipts, vouchers and other documents that will record to the satisfaction of City, the Services performed, items purchased, disbursements made and expenses incurred in respect of this Agreement); and (ii) relates to a privacy or security breach that affects City (including City’s data) and is: (A) reasonably required by City under the circumstance, scope and effect of the breach; (B) reasonably required by City to comply with its breach notification obligations; or (C) reasonably required by City to respond to an investigation of a privacy or security breach by a government authority or law enforcement;

"Change" means a change to the Work or to the terms and conditions of the Agreement in accordance with a Change Order;

"Change Order" has the meaning given to it in Section 6(ii)(b) (Changes);

“**Change Request**” has the meaning given to it in Section 6(ii)(a) (Changes);

“City” means The Corporation of the City of Mississauga, and where an authority or discretion is conferred upon City under this Agreement, means the appropriate Representative or official of City as designated or appointed under its governing by-laws, resolutions or policies from time to time;

“City’s Manual” means City’s Accessibility Standards for Customer Service guide known as “May I help you?: Understanding Accessible Customer Service” and “Breaking Down Barriers: Understanding the Integrated Accessibility Standards Regulation (IASR)”, as provided by City to Supplier and as may be amended from time to time;

"Claim" means any causes of action, actions, claims, demands, lawsuits or other proceedings

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arising out of or in connection with this Agreement;

"**Confidential Information**" means:

(a) Confidential, secret or proprietary information, including data, technical information, financial information, security information and plans, business information (including business plans, strategies and practices) of a Party which is disclosed to or obtained by the other Party or created by the other Party in connection with the fulfillment of the terms of the Agreement, whether or not such information is marked as "Confidential", "Proprietary" or similar designation;

(b) Personal Information;

(c) All information related to the operations of a Party which comes to the attention of the other Party in the course of carrying out the Work; and

(d) All data, formulae, preliminary findings, and other material developed in carrying out the Work;

but excludes any such information, which:

(a) Is or becomes publicly available other than through the fault of the Recipient;

(b) Is rightfully obtained by the Recipient from a third party, or already rightfully in the possession of the Recipient and, in either case, not subject to any pre-existing obligation of confidentiality; or

(c) Is independently developed by the Recipient outside the scope of the Agreement;

provided that any combination of the information which comprises part of the Confidential Information shall not be included in the foregoing exceptions merely because individual parts of the information become publicly available unless the combination itself becomes publicly available or was so received by the Recipient.

The above listed exceptions do not apply in the case of Confidential Information that is also Personal Information;

"Contact" means an authorized Representative, or their designate, who is responsible for the management of the Agreement on behalf of a Party;

"Default" means any act or event of default as contemplated in Section 11(i) (Supplier's Default and City Remedies);

"Deliverable(s)" means any item (tangible or intangible) that Supplier is required to provide to City under this Agreement or any SOW;

"Disclosing Party" means a Party to this Agreement who discloses Confidential Information to

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the other Party;

“Dispute” has the meaning given to it in Section 9(i) (Dispute Resolution);

"Documentation" means all documents (regardless of how embodied) that are related to or that are reasonably required to enable City to use or to obtain the benefit of the Work being provided hereunder;

"Effective Date" has the meaning set out in the beginning of this Agreement;

“Expenses” means any expenses related to the provision of the Work;

“Extension Term” means any extension period after the Initial Term;

“Fees” means fees payable by City to Supplier in accordance with the Pricing Schedule;

“First Level” has the meaning given to it in Section 9(ii) (Escalation Levels);

“Force Majeure” has the meaning given to it in Section 30(xx)(a) (General);

"**Indemnified Persons**" has the meaning given to it in Section 24.1(i) (Indemnity from Supplier to the City);

“**Infringing IP**” has the meaning given to it in Section 24(ii)(a) (Intellectual Property Indemnity);

“Initial Term” has the meaning given to it in Section 10(i) (Term and Termination);

“Intellectual Property Rights” means all the intellectual property, industrial and other proprietary interests or rights, protected or protectable, under the laws of Canada, any foreign country, or any political subdivision thereof, including: (i) all trade names, trade dress, trademarks, service marks, logos, brand names and other identifiers; (ii) copyrights, moral rights (including rights of attribution and rights of integrity); (iii) all trade secrets, inventions, discoveries, devices, processes, designs, techniques, ideas, know-how and other confidential or proprietary information, whether or not reduced to practice; (iv) all domestic and foreign patents and the registrations, applications, renewals, extensions and continuations (in whole or in part) thereof; and (v) all goodwill associated therewith and all rights and causes of action for infringement, misappropriation, misuse, dilution or unfair trade practices associated with (i) through (iv) above;

“Losses” means liabilities, losses, costs, damages, and expenses (including legal, expert, and consulting fees);

“MFIPPA” means the Municipal Freedom of Information and Protection of Privacy Act, R.S.O. 1990, c. M.56 as amended from time to time or superseded;

“Parties” means City and Supplier, and **“Party”** means either one of them;

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"Person" includes any individual, person, estate, trust, firm, partnership or corporation, government or any agency or ministry of any government, and includes any successor to any of them;

"Personal Information" means any information which meets the definition of Personal Information contained in Section 2(1) of MFIPPA and includes information that:

(a) Either City, Supplier or a third party can associate with, or relate back to, an identifiable individual; and

(b) Is disclosed or transferred by City to Supplier pursuant to this Agreement or is otherwise collected or compiled by Supplier in the performance of its obligations under this Agreement;

"Pre-existing IP" means any intellectual property created prior to or other than pursuant to the performance of the Work;

"Pricing Schedule" means the schedule in this Agreement titled "Schedule – Pricing";

"**Privacy Contact**" has the meaning given to it in Section 18(i)(b) (Privacy);

"Purchase Order" means the purchase order issued by City with respect to the Work or part thereof;

"Recipient" means the Party to this Agreement that is receiving or otherwise obtaining access to Confidential Information;

"**Record Of Training**" has the meaning given to it in Section 29(ii) (Accessibility);

"Replacement Provider" has the meaning given to it in Section 14(ii)(a) (Transition Services);

"**Report(s)**" means any report that: contains any of City's data, is generated through the use of City's data, or is provided by Supplier to City as part of the Work;

"Representative(s)" means, in the case of City, Supplier or any other Person, any directors, officers, employees, agents, consultants or subcontractors, as well as the subcontractor's directors, officers, employees, agents, consultants or subcontractors. In the case of City, Representatives also includes City's elected officials;

"Second Level" has the meaning given to it in Section 9(ii) (Escalation Levels);

"Service(s)" means all services provided to City by Supplier pursuant to this Agreement;

"**Service Level Metric(s)**" means a service level metric applicable to Supplier or its performance of the Work or any part thereof as set out in the Agreement, SOW, SLA Schedule or Bid Request;

"**SLA Schedule**" means any written agreement (as amended from time to time) made between

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City and Supplier that expressly states that it contains the Service Level Metrics that are applicable to the performance of the Work or any part thereof as set out in the Agreement, SOW or Bid Request;

"**Specified Period**" has the meaning given to it in Section 11(i) (Suppliers Default and City Remedies);

"Specifications" means the detailed description of the dimensions, requirements, functionality, capacity, content or attributes of the Work or any component thereof;

"Statement of Work" or "SOW" means the document (as amended from time to time) attached hereto as Schedule – Statement of Work;

"Subcontractor" is a person or entity having a direct contract with Supplier to perform a part or parts of the Work, upon the prior approval of City;

"Supplier" is as defined at the top of this Agreement;

"Supplier's Policies" means Supplier's policies and procedures relating to the protection of Confidential Information (including Personal Information) and data security;

"Taxes" has the meaning given to it in Section 13(ii) (Price, Invoices and Payment);

"Term" means the Initial Term and any Extension Term;

"Third Level" has the meaning given to it in Section 9(ii) (Escalation Levels);

"**Total Value Of The Agreement**" means the total aggregate value of the costs of providing the Work including any Deliverables;

"Transition Period" has the meaning given to it in Section 14(i) (Transition Services);

"Transition Services" has the meaning given to it in Section 14(i) (Transition Services);

"Work" means everything to be done, supplied or provided by Supplier under this Agreement as applicable, in whole or in part which for greater clarity may include hardware, software, or services, as applicable; and

"WSIB" has the meaning given to it in Section 27(i)(a) (WSIB).

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2. **STRUCTURE**

(i) **Order of Precedence**

The Agreement shall be comprised of the following documents, whether or not physically attached hereto, and where there is any ambiguity, conflict or inconsistency between the terms and conditions contained in any of these documents, the order of precedence shall

be as follows:

(a) Change Orders and amendments to the Agreement;
(b) The main body of this Agreement;
(c) SAAS and Services Schedule(s) to this Agreement;
(d) SLA Schedule;
(e) CIA appended to this Agreement;
(f) Statement of Work;
(g) Purchase Orders issued by City;
(h) PIA appended to this Agreement;
(i) Post bid correspondence (in reverse chronological order by date) containing changes to the Bid if any, as agreed to by City;
(j) City Specifications as described in the Bid Request;
(k) All other components of the Bid Request not specifically itemized in this Section 2 (Structure); and
(l) Supplier's Bid, excluding any form of agreement of Supplier prepared or submitted by Supplier as part of its Bid.

(ii) **Entering into SOWs**

From time to time, City and Supplier may enter into SOWs, governed by this Agreement, but City is not obligated to do so. Any additional SOWs made after the Effective Date of this Agreement must be executed by both parties to be binding. Changes to a SOW may be made upon prior written mutual agreement of the Parties hereto.

(iii) **Interpretation**

The headings used in this Agreement are for convenience of reference only, and are not intended to be full or accurate descriptions of the content of the paragraphs.

No provision of this Agreement will be interpreted against any Party merely because that Party or its legal representative drafted the provision.

Throughout this Agreement: (i) the term "including" or the phrases "e.g.," or "for example" have been used to mean "including without limitation": (ii) the singular includes the plural and vice-versa, and (iii) any gender includes all other genders, unless the context requires otherwise.

All rights and remedies of City for any Default or breach of Supplier's obligations under the Agreement shall be cumulative and may be exercised singularly, jointly or in combination, and they shall not be deemed to be in exclusion of any other rights or remedies available to City under the Agreement or otherwise at law.

The Parties expressly request that this Agreement as well as documents relating thereto be drawn up in English. Les Parties ont expressement exigé que cette convention ainsi que tous les documents s'y rattachant soient rédigés en anglais.

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3. ETHICAL CONDUCT OF SUPPLIER

(i) Supplier must declare and fully disclose to City's Contact any actual or potential conflicts of interest or unfair advantage related to the performance of the Agreement or where Supplier foresees an actual or potential conflict of interest in the performance of the Agreement.

(ii) Supplier shall disclose to City's Chief Procurement Officer any affiliations or other relationships with other suppliers that might be seen to compromise the principle of fair competition, including any proposed or existing subcontracting relationships.

(iii) Supplier shall not offer anything of any value, tangible or intangible, including but not limited to rebates, gifts, meals, money or special privileges of any kind to City Representatives, or otherwise attempt to influence or interfere with the duties of City Representatives in relation to a procurement process or management of this Agreement or any other agreement.

(iv) Supplier shall not offer anything of any value, tangible or intangible including but not limited to rebates, gifts, meals, money or special privileges of any kind to Council, or otherwise attempt to influence or interfere with a procurement process or this Agreement or any other agreement.

(v) Supplier shall at all times maintain confidentiality of any of City's Confidential Information disclosed during a procurement process or in the performance of this Agreement or any other agreement.

(vi) The Supplier shall at all times comply with City policies for ethical conduct, including the Supplier Code of Conduct and the Respectful Workplace Policy. In the event of an incident or alleged incident of inappropriate behaviour or other breach of contract or City policy, Supplier shall, and shall cause its Representatives to, fully cooperate and participate in any investigation that City considers necessary and maintain the confidentiality of such investigation.

(vii) If Supplier is found to be in breach of this Section 3 (Ethical Conduct of Supplier), it is subject to disqualification from bidding and/or termination of this Agreement or any contracts they may have with the City, in accordance with Section 23 of the City's Procurement By-law.

4. CONFLICT OF INTEREST

(i) Supplier shall act ethically, fairly and cooperatively in all of its dealings with City and all elected officials, officers, employees and independent consultants of City and co-operate with them in respect of the discharge of their duties to the City.

(ii) Supplier shall act in strict compliance with all Applicable Laws and conform to the rules of conduct and performance of any trade association or professional regulatory body of which Supplier is a member or which otherwise governs the provision of its Work.

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(iii) Supplier represents and warrants that Supplier (including Supplier Representatives) has not engaged and will not engage in any activity where such activity creates a conflict of interest (actually or potentially in the sole opinion of City) pursuant to the Agreement. Supplier shall notify City of and fully disclose to City, in writing and immediately upon such conflict of interest becoming known to Supplier, any potential or actual conflict of interest that may arise or has arisen prior to entering into this Agreement or during the performance of its duties under this Agreement. Supplier represents and warrants to City that: (i) no bribe, gift or other inducement has been paid, given, promised or offered to any officer, agent, employee or elected official of City for, or with a view to, entering into the Agreement or any other agreement with City; (ii) no third party has been employed or retained to solicit or obtain this Agreement for a contingent fee.

(iv) If City determines that a conflict of interest exists, City may, at its sole discretion, suspend or defer the Work until the conflict is removed to the satisfaction of City or terminate the Work. If, during the course of the Work, Supplier is retained by another client for a new assignment, giving rise to a potential conflict of interest, then Supplier shall so inform City's Contact immediately. If City's Contact determines that a conflict of interest exists, Supplier shall refuse the new assignment or shall take such steps as are necessary to remove the conflict of interest and, where Supplier fails to do this within a reasonable time, City may terminate the Agreement or Work, in whole or in part. Supplier shall be responsible and indemnify the City for all of the City's costs, expenses, losses and damages whatsoever which may be incurred or arise as a result of the Supplier's breach of its obligations herein including but not limited to all costs incurred to replace the Work of the Supplier, all delay costs, legal and other professional service costs, and lost revenue and opportunities. Without limiting the foregoing provisions, except with the prior written consent of the City:

(a) Before accepting any retainer to act on behalf of the City, the Supplier shall exercise reasonable due diligence to confirm that there is no conflict of interest within the contemplation of this Article; and

(b) The Supplier shall not act on behalf of the City with respect to any issue or in connection with any property in which the Supplier or any director, officer or employee of the Supplier has a direct or indirect pecuniary interest, including any contingent interest; and

(c) The Supplier shall accept no commission, gratuity or other payment of any kind from any person, other than the City's payment for Work in accordance with this Agreement, in respect of its performance or intended performance, duties or exercise or intended exercise of any influence, power or discretion associated with its provision of Work to the City.

(v) This Section 4 (Conflict of Interest) shall apply to all Subcontractors of Supplier with necessary modifications.

5. COMPLIANCE WITH CITY POLICIES

(i) Supplier shall act, and perform its Work, in strict compliance with the Agreement and with

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all Applicable Laws, including City's:

(a) Procurement By-law;

(b) Supplier Code of Conduct;

(c) Respectful Workplace Policy;

(d) Workplace Violence Policy;

(e) Supplier Performance Management Policy; and

(f) User Fees and Charges By-law**.**

(ii) City policies may be found at https://www.mississauga.ca/services-and-programs/business/doing-business-with-the-city/. In the event of an incident or alleged incident of inappropriate behaviour or other breach of Agreement or City policy, Supplier shall, and shall cause its Representatives to, fully cooperate and participate in any investigation that City considers necessary and maintain the confidentiality of such investigation.

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6. **ADMINISTRATION**

(i) **Contacts**

Each Party will appoint one of its individual Representatives to be its Contact. A Party's Contact is responsible for the day-to-day matters arising from or relating to the Work.

(ii) **Changes**

Either City or Supplier may request a Change without invalidating the Agreement, and under the following process:

(a) The Party requesting a Change may propose and advance such Change by giving the other Party written notice of the proposed Change ("**Change Request**"). Such Change Request should include what the desired Change is, why the Change is being requested, and all implications associated with the Change including all changes in terms and conditions, scope of work, pricing (including all changes to costs, Fees, payment terms, and payment due dates), timing, project timeline, project schedule, Term, Deliverables, specifications, requirements, technical design, and milestones, and be sufficient to allow the other Party to consider and assess the proposed Change.

(b) Subject to Section 6(ii)(c) (Changes) below, after a Party receives a Change Request from the other Party, City and Supplier will each use their reasonable commercial efforts to, and in good faith, discuss and agree upon any such proposed Change. Such discussion between City and Supplier shall commence

within five (5) Business Days of receipt of a Change Request by a Party. If there is mutual agreement of the Parties to the terms and conditions of the proposed Change, Supplier will then prepare and deliver a change order to City containing the terms and conditions, the form of which shall be substantially as set forth in the Schedule - Change Order Form attached to this Agreement ("**Change Order**").

(c) For greater certainty, a proposed Change under this Section 6 (ii) (Changes) shall not become effective unless and until City and Supplier agree in writing on the terms and conditions of the Change Order and each execute it. Any such mutually executed Change Order shall constitute an amendment to this Agreement as set out in the Change Order and shall form part of this Agreement. Supplier is responsible for any costs that it incurs to comply with this Section 6 (Administration).

(iii) **Records**

During the Term and for seven (7) years after the termination or expiration of the Agreement, Supplier will keep and preserve accurate Business Records in reasonable records retention practices and generally accepted accounting principles. The retention period for all Business Records relating to any dispute that has arisen between the Parties is the greater of: (i) the period set out in the preceding sentence; or (ii) the period ending on the date on which the dispute is fully resolved (i.e. there is no further recourse for either Party).

7. **INTENTIONALLY DELETED**

8. **<u>AUDITS</u>**

(i) **Financial Audit**

(a) During the Term and for a period of seven (7) years after the termination or expiry of the Agreement, City will be entitled, upon at least two (2) Business Days' prior notice to Supplier, to audit and inspect the Business Records. Such audit and inspection may be conducted by City's own employees or agents, or by an external auditor appointed by City. Any Person retained by City to conduct any review or audit pursuant to this Section 8 (Audits) will be required to comply with any applicable provisions of the Agreement relating to the protection of Supplier's Confidential Information.

(b) If requested by City, Supplier shall make available to City such Business Records and other documents and City shall have the right to make copies thereof and take extracts therefrom.

(c) During the Term and for a period of seven (7) years after the termination or expiry of the Agreement, City will be entitled, upon at least two (2) Business Days' prior notice to Supplier, to enter and inspect any premises and systems where Business Records are maintained or Services are performed to review or audit Supplier's

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compliance with the Agreement. Such review or audit may be conducted by City's own employees or agents, or by an external auditor appointed by City and include the right to make copies and the right to take notes. Supplier will cooperate with and provide reasonable assistance to City to facilitate the review or audit. City will use reasonable efforts to work with Supplier to mitigate any disruption to Supplier's operations. If any such premises or systems are not under Supplier's control, Supplier will secure all rights required to allow City or its designated auditor to enter and inspect such premises or systems.

(ii) **Privacy and Confidentiality Audit**

(a) On prior notice, Supplier shall permit City, and agrees to cooperate with City, to have reasonable access to Supplier's premises and systems (during Business Hours), Business Records, and other records to review or audit Supplier's security policies, procedures, and practices and to discuss the same with the designated representative in order to verify compliance herewith.

(b) If City identifies any deficiencies during a review or audit, Supplier shall, within seventy-two (72) hours thereof correct the deficiencies at its own expense.

(c) City may, on no less than seventy-two (72) hours prior notice to Supplier, enter Supplier's premises during any Business Day to inspect:

(1) any Personal Information in the possession or control of Supplier;

(2) Supplier's technical and organizational security measures in relation to such Personal Information; and

(3) Supplier's Policies, procedures and records in relation to its handling of the Personal Information.

(d) Upon City's request, Supplier will provide evidence that it has established and maintains adequate security protocols governing the protection of Personal Information and is in compliance with any other security requirements in this Agreement with respect to the protection and safeguarding of Personal Information.

(e) City shall have the right to obtain from Supplier copies of information concerning Supplier's security protocols related to the Work and to conduct onsite inspections and/or audits (upon reasonable notice) of Supplier's security protocols.

(f) Supplier shall make available to applicable regulatory authorities upon reasonable notice Business Records and other records in Supplier's possession or control and requested by applicable regulatory authorities in connection with City's privacy compliance.

(g) Supplier shall ensure that all of its Subcontractors and agents handling any Personal Information grant a right of inspection and audit to City in respect of such

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Personal Information that is no less comprehensive than that which is set out in this Agreement.

(iii) **Assessments by the City**

City conducts threat risk assessments, privacy impact assessments and other similar assessments from time to time. When they relate to the performance of the Work provided by Supplier, Supplier will use reasonable efforts to provide City with the information about the Work in a timely manner that City requests in order to complete those assessments.

9. **DISPUTE RESOLUTION**

(i) **Dispute**

In the event of a dispute controversy, claim or alleged breach relating to or arising from the Agreement (a "**Dispute**"), the Party who wishes to raise the dispute will give the other Party written notice of the Dispute. The Dispute will be deemed to have arisen on the day that notice is received by the other Party and shall be addressed in accordance with City's Supplier Performance Management Policy.

(ii) **Escalation Levels**

In the event of any Dispute, the Dispute shall first be dealt with by City's Contact or designate and the Supplier's designated first level negotiator**,** its_____ **[specify the Supplier's First Level negotiator here]** (this escalation level is referred to as the "**First Level**"). Within five (5) days (or some other time period agreed to by the Parties) of the Dispute deemed to have arisen, City's Contact or designate and Supplier's_____ **[Insert the Supplier's First Level negotiator here]** will meet and attempt to resolve the dispute.

Should the Dispute not be resolved within the five (5) days (or some other time period agreed to by the Parties) of its referral to the First Level, the Dispute shall be escalated to the Manager of City's Contact's division or designate and Supplier's designated second level negotiator, its_____ **[Insert the Supplier's Second Level negotiator here]** (this escalation level is referred to as the "**Second Level**").

Should the Dispute not be resolved within five (5) days (or some other time period agreed to by the Parties) of its referral to the Second Level, the Dispute shall be escalated to a Director of City's Contact's division or designate and Supplier's designated third level negotiator, its_____ **[insert the Supplier's Third Level Negotiator here]** (this escalation level is referred to as the "**Third Level**"). Prior to the start of negotiations at the Third Level, the Supplier shall provide City's Contact with a written statement certifying that Supplier's designated third level negotiator is authorized to bind Supplier to the agreement, if any, reached at the Third Level negotiations.

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Should the Dispute not be resolved within fifteen (15) Business Days (or some other time period agreed to by the Parties) of its referral to the Third Level, either Party may exercise its rights available at law.

(iii) **Continued Performance**

Except where clearly prevented by the nature of the Dispute, City and Supplier agree to continue performing their respective obligations under this Agreement while a Dispute is being dealt with under this Section 9 (Dispute Resolution).

For clarification, the provisions of this Section 9 (Dispute Resolution) shall not limit or restrict the right of either Party to seek injunctive relief or to bring any action in any court of law with respect to any Dispute relating to the improper use or misappropriation of Intellectual Property Rights or breach of confidentiality or breach of privacy.

(iv) **Performance Monitoring and Management Program**

Supplier will be required to participate in City's Supplier Performance Management Policy established by City.

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10. TERM AND TERMINATION

(i) **Term**

The initial term of the Agreement shall be for five (5) years beginning on **[insert start date]** and ending on **[insert end date]** (the "**Initial Term**") unless terminated earlier in accordance with the terms of the Agreement. Subject to any termination rights herein, the Agreement will automatically extend for a five (5) year period beginning on **"[insert first extension start date: 5 years after start date]"** and ending on **[insert first extension end date]** (the "**Extension Term**") upon the same terms and conditions unless City provides Supplier with at least thirty (30) days' written notice prior to the end of the Initial Term that the Agreement is not to be extended, in which case the Agreement shall not extend.

(ii) **Termination**

City may terminate this Agreement or any SOW without cause and without liability by giving Supplier at least sixty (60) days' written notice of the termination date. Additional termination rights that apply only to a certain SOW may be set out in that SOW.

Upon any early termination, Supplier will refund any amounts paid by City to Supplier in advance for Work that has not been rendered or provided.

11. SUPPLIER'S DEFAULT AND CITY REMEDIES

(i) The following occurrences constitute acts or events of default ("**Default**") by Supplier (including any of its employees, officers, agents, partners or any other representative performing Work) under, or otherwise connected with, this Agreement:

(a) Where Supplier fails or neglects to commence or to proceed with the Work diligently at a rate of progress that, in the reasonable opinion of City, will ensure completion within the time provided for in this Agreement;

(b) Where Supplier has made any material misrepresentation with respect to this Agreement;

(c) Where Supplier fails to comply with or perform any provision, term, condition or obligation, or breaches any representation or warranty, of this Agreement;

(d) Where Supplier: (A) ceases to carry, or threatens to cease carrying, on business in the normal course; (B) makes a general assignment for the benefit of creditors; (C) becomes subject to any proceeding for liquidation, insolvency, bankruptcy, or the appointment of a receiver, receiver-manager, trustee or monitor; (D) suffers the appointment of a receiver, receiver-manager or trustee under any agreement; (E) initiates action to wind up or liquidate its business voluntarily or otherwise; (F) gives notice to any of its creditors that it has suspended or is about to suspend payments of its debts; (G) ceases to meet its liabilities generally as they become due or otherwise commits an act of bankruptcy under the *Bankruptcy and Insolvency Act* (Canada); or (H) agrees to make a sale of substantially all of its assets; or

(e) Where Supplier:

(1) Is involved in judicial or arbitral proceedings against or by City, other than in respect of this Agreement;

(2) Has been convicted of a statutory offence; or

(3) Is related to or controlled by another Person to whom paragraphs 1 or 2 immediately above applies.

In the event of a Default, City may notify Supplier in writing that Supplier is in default and instruct Supplier to correct the Default within the period of time determined by City's Contact in their sole and unfettered discretion ("**Specified Period**"). Supplier shall correct the Default within the Specified Period and provide City with satisfactory proof that appropriate corrective measures have been taken.

(ii) If Supplier determines that the correction of the Default cannot be completed within the Specified Period, then Supplier shall:

(a) Commence the correction of the Default within the Specified Period; and

(b) Provide City within the Specified Period with its proposed schedule for the completion of such correction.

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If City accepts Supplier's revised schedule for the completion of such correction, then Supplier shall correct the Default within the revised schedule and provide City with satisfactory proof that appropriate corrective measures have been taken.

(iii) If Supplier fails to correct the Default to the satisfaction of City in the time specified or subsequently agreed upon, without prejudice to any other right or remedy City may have, City may do any one or more of the following:

(a) Correct the Default itself or retain one or more third parties to correct the Default, and deduct the cost thereof from any payment then or thereafter due to Supplier;

(b) Perform the Agreement or any part thereof itself or retain one or more third parties to perform the Agreement or any part thereof, and deduct from any payment then or thereafter due to Supplier the costs incurred by City in excess of what would have been owed to Supplier for the applicable part of the Work for the period of time and the extent of the Work provided;

(c) Suspend the performance of the Agreement by Supplier;

(d) Terminate all payments to Supplier to the extent that the Work is performed by City or by one or more third parties;

(e) Suspend all payments to Supplier;

(f) Terminate Supplier's right to continue with the Work in whole or in part or terminate the Agreement or any SOW; and

(g) Ban Supplier from competing for or entering into any City contracts for a period determined by City, or take Supplier's default into account with regard to the award of any future contract.

(iv) Supplier, upon receiving notice of suspension or termination from City, shall suspend the Work as soon as reasonably possible except Work which, in Supplier's opinion, acting reasonably, is necessary for the safety of personnel and for the care and preservation of the Work.

(v) During the period of suspension, Supplier shall not remove from City's property any part of the Work, vehicles, equipment or other materials without the prior written consent of City's Contact.

(vi) A waiver of a Default will not extend to or be taken in any manner whatsoever to affect the rights of City with respect to any subsequent default, whether similar or not.

12. **DELAY BY CITY**

Subject to Section 30(xx), in the event that City is delayed by more than sixty (60) days in performing any duties of City that are explicitly detailed in a Statement of Work, the Parties will

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follow the Change process in accordance with Section 6(ii) (Changes) to enter into a Change Order to address the implications of such delay on the timelines. Without limiting any other rights or privileges of City in this Agreement with respect to delay, Supplier is not entitled to and releases and waives any rights to any other remedies, Claims, demands, costs, penalties, fines, or additional fees.

13. PRICE, INVOICES AND PAYMENT

(i) Fees

City will pay to Supplier the fees as further detailed in the Pricing Schedule pursuant to and in accordance with the Agreement ("**Fees**"). Unless otherwise expressly agreed in writing by City, the Fees listed therein shall be deemed to have been quoted on an all-in basis, and Supplier shall accept such Fees as full payment for furnishing:

(a) All necessary labour, goods, materials, services, tools, equipment, supplies, software, intangibles, and other incidentals, for performing the Work contemplated under this Agreement;

(b) All reports, drawings and documents as may be required by City;

(c) All excise taxes, customs duties, customs clearance and brokerage fees, royalties and patent or licence fees;

(d) Insurance, licences, permits and inspections; and

(e) All other items and expenses required to carry out Supplier's responsibilities and duties with respect to the Work.

No interest will be charged on late payments. City may set off these amounts against any amount payable to City by Supplier pursuant to the Agreement. City may withhold any amount payable to Supplier pursuant to the Agreement if, in the opinion of City acting reasonably, Supplier has failed to comply with any requirements of the Agreement.

(ii) Taxes

All Fees are exclusive of all taxes now in force or enacted in the future and imposed on the provision of goods and services ("**Taxes**"). City will be responsible for all such Taxes, except for Taxes based on Supplier's net income, capital gains or employee withholdings. Applicable Taxes will be included in each invoice.

(iii) Expenses

Unless expressly set out otherwise and agreed in writing in the Pricing Schedule or an addendum to it, City will not reimburse Supplier for any expenses related to the provision of the Work ("**Expenses**"). Any obligation to reimburse Supplier for Expenses is subject to the Expenses being: (i) charged at Supplier's cost; (ii) pre-approved in writing by City;

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(iii) incurred in accordance with City's policies and guidelines; (iv) documented by receipts; and (v) not in excess of any limit on Expenses set out in the Pricing Schedule.

(iv) **Invoicing**

(a) Supplier shall submit invoices to City for the Work performed and/or delivered, in arrears and not in advance. Supplier shall submit any supporting documentation to substantiate the invoice if so requested by City's Contact.

(b) City may withhold the full or part of the payment on an invoice if City is not satisfied with the details and information provided on the invoice and any supporting documentation.

(c) Supplier must submit invoices to cityofmississauga_invoicecapture@concursolutions.com. Subject line must include Supplier's company name and the invoice number. All invoices submitted must contain the following required information:

- Bill-to section must use City's full legal name as follows:
  The Corporation of the City of Mississauga
  Attention: Andy Nguyen
  300 City Centre Drive
  Mississauga, ON L5B 3C1
- The correct and current City-issued purchase order if available or Agreement number;
- Name of person who placed the order or requested the goods or services with associated email address;
- Location of services or delivery of goods;
- Clear description of the goods or services provided;
- Supplier's name and remittance address; Supplier's name must match the name on the Agreement and Supplier's GST/HST Registration number;
- Invoice number;
- Amount of invoice with applicable taxes shown separately;
- GST/HST registration number (if applicable);
- Currency of amount owed, if other than Canadian dollars;
- Specific information should be set out in accordance with the line item details shown in the Pricing Schedule (as applicable).

Most file formats are accepted by Concur:

tif/.tiff; .jpeg/.jpg; .png; .pdf (with XFA; with embedded fonts); .doc/.docx; .xls/.xlsx; .eml (file saved using MS Outlook); winmail.dat; .csv

Invoices submitted without the required information may be rejected. The payment term will be calculated from the date of a valid invoice receipt. For more

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information on how to submit an invoice, please refer to the City's Accounts Payable webpage at:

http://www.mississauga.ca/portal/cityhall/accountspayable

(d) City's standard payment terms are net thirty (30) days after all the following conditions are met:

(1) The invoice complies with the invoicing requirements above;

(2) Supplier has provided the Work to the reasonable satisfaction of City's Contact; and

(3) City's Contact has approved the invoice.

(v) **Supplier costs due to legislative and regulatory amendments**

The legislation and regulations governing the workplace in Ontario, including the *Immigration and Refugee Protection Act, Employment Standards Act, 2000, Employer Health Tax Act, Labour Relations Act, 1995, Occupational Health and Safety Act, Workplace Safety and Insurance Act, 1997*, may change at any time and may impact the Supplier's costs. City is under no obligation to entertain requests from Supplier for increased compensation in the event there is an increase to minimum wage or there are any other legislative or regulatory amendments. For greater certainty, under this Agreement Supplier assumes all risk, liability and responsibility associated with increased costs due to any Applicable Laws.

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14. **TRANSITION SERVICES**

(i) Supplier agrees that City shall have the right to require Supplier to continue to perform all or any part of the Services (in accordance with this Agreement), and provide all, or any part of, the termination transition assistance ("**Transition Services**") that is stipulated in this Section 14 (Transition Services) after the expiration or termination of the Agreement and until the Transition Services are completed to the reasonable satisfaction of the City ("**Transition Period**") as City may determine and direct by prior written notice to Supplier. Without limiting the foregoing, the City may initiate the Transition Services prior to the expiration or termination date of the Agreement. The terms of this Agreement shall apply in full force during the Transition Period.

(ii) Supplier shall provide Transition Services to City which shall include at City's sole discretion any of the following:

(a) all assistance, information, and cooperation and performance of all consultative, administrative, operational, personnel, technical, compliance or other services, that are reasonably required to: assist and facilitate City, and/or, if applicable, an alternative provider as chosen by City (together the "**Replacement Provider**") in the administration, management and operation of the day-to-day business activities and operations of the Services; and to assist and facilitate City's transition

of the Services to the Replacement Provider including reasonable cooperation, assistance and support to facilitate an orderly, efficient, seamless, and professional transition in the provision of the Services;

(b) documenting and delivering all Business Records and information concerning the Work that are required under the Agreement;

(c) if applicable, delivering all existing privileged systems and systems support profiles; all monitoring logs and all system logs, including logs recording activities on Services (capacity, usage, monitoring) problem tracking and resolution documentation and status reports;

(d) promptly returning and/or destroying upon City's request, all City's Confidential Information and City's intellectual property in accordance with the terms of the Agreement;

(e) providing work volumes and an evaluation by Supplier of the effort required to maintain the Services and any applicable environments for each Service, including all staffing requirements, technological requirements, work effort, skill sets, current service levels, and detailed documentation about current network capacity and historical performance referenced against the required service levels for each component over the preceding twelve (12) months or longer time period as reasonably requested by City;

(f) with respect to work in progress as of the end of the Transition Period, Supplier shall document the current status of all work in progress, and shall stabilize all work in progress for continuity during transition. For greater clarity, this means Supplier will facilitate the transition to the Replacement Provider in an orderly, documented manner, reporting the status of work in progress, what is outstanding, and what is required to complete the work in progress. Supplier shall provide all training to Replacement Provider for work in progress to complete transferring responsibility of such work in progress all in accordance with the service levels for the Services, if applicable, or as otherwise reasonably requested by City; and

(g) providing City with a list of all outstanding problems and problem logs which have not previously been provided to City, for the period commencing at least one (1) year prior to the end of the Transition Period.

For greater certainty, all Fees, charges, costs or expenses that City is required to pay Supplier for any Transition Services shall be at the same rates as those charged by Supplier for the Services in the last twelve (12) months of the Term.

15. QUANTITIES AND ESTIMATES

(i) Unless otherwise expressly stated in this Agreement:

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(a) Where specified, quantities are estimated. City reserves the right to increase or decrease purchase quantities by any amount at its sole discretion, however, all prices shall remain firm for the duration of the Agreement unless otherwise stated in the Pricing Schedule; and

(b) City does not guarantee, represent or warrant a minimum amount of Work.

16. SUBCONTRACTING

(i) Supplier may not subcontract the performance of all or part of the Services without the prior written consent of City. If Supplier subcontracts a portion of its obligations hereunder with City's written consent, Supplier is responsible and liable for: (i) coordinating the services of its Subcontractors and other Representatives; and (ii) the acts and omissions of its Subcontractors, as if they were its own acts and omissions. Supplier will be solely responsible for all payments to all its Representatives including but not limited its Subcontractors.

17. CONFIDENTIALITY

(i) Subject to MFIPPA or other Applicable Law or an order from a court of competent jurisdiction, Supplier shall not disclose any of City's Confidential Information in any manner without City's prior written approval.

(ii) Without limiting the generality of Section 17(i) (Confidentiality) directly above, the Parties agree that it will be necessary for each of them to disclose or make available to the other Confidential Information and that some Confidential information may already have been disclosed prior to the date hereof. Each Party acknowledges and agrees that any such Confidential Information is confidential and may be proprietary information of the Disclosing Party and each Party agrees as follows:

(a) to use, store, and reproduce the Confidential Information of the other Party only as permitted under this Agreement or as needed to perform its duties hereunder and in accordance with MFIPPA and other Applicable Laws.

(b) except as provided for in this Agreement, each Party agrees not to disclose the Confidential Information of the other Party without the other Party's prior written consent and agrees to take such care to protect the confidentiality of the Confidential Information as would be taken by a reasonable party to protect its own confidential information from disclosure;

(c) upon becoming aware of any unauthorized copying, use, disclosure or destruction of the Disclosing Party's Confidential Information, notify the Disclosing Party immediately and make a reasonable effort to minimize the effect of any such copying, use or disclosure;

(d) use of the other Party's Confidential Information in a manner contrary to this Agreement will cause the Disclosing Party irreparable harm for which money

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damages will not make whole and the Recipient hereby consents to any injunctive relief entered by any court of competent jurisdiction prohibiting it from such violation of this Agreement; and

(e) each Party and its Representatives retains all right, title and interest in or to its Confidential Information. Without limiting the foregoing and for greater certainty, the Recipient shall not acquire any express or implied rights, title or interest in Disclosing Partys Confidential Information.

(iii) Prior to obtaining any of City's Confidential Information and commencing any Work hereunder, Supplier will notify City of the location and country in which any of City's Confidential Information will be stored and provided that City approves of such location, then Supplier shall store City's Confidential Information only in such approved location and shall not remove or access City's Confidential Information from any other location unless such access is expressly permitted in writing by City.

(iv) In the event that Supplier receives a request for disclosure of, production of, or provision of access to Confidential Information of City, prior to any such disclosure, production, or provision Supplier shall notify City immediately in writing of such request and shall not agree to such disclosure without City's prior written consent, unless legally required to, in which case shall notify City of any such requirement as soon as legally permissible.

(v) At any time upon City's request, and in any event, upon completion of Supplier's obligations for which City's Confidential Information was used and is no longer needed to provide such obligations, or termination of this Agreement, immediately, at no additional cost, return all of City's Confidential Information held in whatever form unless retention of City's Confidential Information is required by Applicable Laws. Supplier will maintain a copy of all data until the date on which City confirms in writing that the last copy of the data provided to City is complete, after which, Supplier shall destroy all originals, summaries and copies of City's Confidential Information. Supplier shall delete City's Confidential Information in accordance with standard best practices such as NIST 800-88 Guidelines for media sanitation; provided however, that Supplier will not be required to remove copies of the data from its backup media and servers until such time as the backup copies are scheduled to be deleted in the normal course of business; provided that in all cases, Supplier will continue to protect City's Confidential Information.

(vi) Supplier shall return City's Confidential Information in its original form and in a format reasonably accessible by City. Supplier shall complete such return or destruction not less than thirty (30) days after the termination or expiration of this Agreement or upon City's written request. Within such thirty (30) day period, Supplier shall certify in writing to City that such return or destruction has been completed. The manner of destruction must be such that the Confidential Information cannot be reconstructed.

(vii) Supplier shall ensure that any and all Subcontractors or third parties given access to Confidential Information (in accordance with City's instructions) are subject to terms and conditions that are equally or more onerous than those contained herein, including Section

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18 (Privacy).

18. PRIVACY

(i) The Parties agree that, in the course of performing their duties under this Agreement, Supplier may obtain access to Confidential Information through City which includes Personal Information. With respect to such Confidential Information which includes Personal Information, Supplier agrees that:

(a) It is providing a service to and acting on behalf of the City and therefore, for the purposes of this Agreement, the Supplier is subject to the obligations in MFIPPA;

(b) It shall designate a Representative who is responsible for all aspects of privacy and confidentiality required hereunder (a "**Privacy Contact**");

(c) it has documented, implemented and will maintain its own policies, practices or guidelines relating to the collection, use, storage, access, disclosure and destruction of Personal Information;

(d) It shall collect, use and maintain Personal Information accurately and solely on behalf of City for the purposes of and in accordance with the terms of this Agreement;

(e) It shall use Personal Information only for the purposes necessary to fulfil its obligations under this Agreement;

(f) It shall maintain Personal Information only for so long as required to fulfil the purposes for which it was collected (as advised by City), or as may be required by Applicable Law, whichever is longer;

(g) It shall promptly refer to City any requests received for access to, amendment of or complaints about Personal Information within the care and control of Supplier, and to co-operate with City in providing timely access to the same;

(h) It shall amend, rectify, delete or update Personal Information only upon receiving instructions from City to do so;

(i) It shall abide by all other reasonable City rules and procedures pertaining to Personal Information, as amended and timely communicated to Supplier from time to time;

(j) In any event, Supplier shall remain fully responsible and liable for the use and disclosure of any Personal Information that Supplier transfers or discloses to any third party;

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(k) It shall not create or maintain data which is derivative of Personal Information, including aggregate Confidential Information disclosed by City with any other collection of information, unless explicitly permitted in writing by City; and

(l) It shall not, by its misconduct or negligent act or negligent omission, place City in breach of MFIPPA or other Applicable Laws related to privacy and data protection.

Supplier agrees that its obligations under this Section 18 (Privacy) are in addition to, and not in substitution for, any other obligations respecting confidentiality or security that may be contained in this Agreement and that the obligations of the Supplier under this Section 18 (Privacy) shall survive the termination or expiry of this Agreement.

19. SECURITY AND SAFEGUARDING OF CONFIDENTIAL INFORMATION

(i) Safeguarding of Confidential Information

Supplier shall employ adequate administrative, physical and technological safeguards to protect Confidential Information in an environment secure against loss, theft, or unauthorized access, disclosure, copying, use or modification. To do so, at a minimum, Supplier must:

(a) implement any reasonable security or protection measures requested by City from time to time;

(b) establish policies and procedures in compliance with MFIPPA and Applicable Laws and obligations under this Agreement;

(c) store the Confidential Information: (i) electronically and secured by a multi-factor authentication, or similar, control mechanism; and (ii) with the use of industry standard secure encryption methods designed to protect stored Confidential Information of City;

(d) only provide the passwords and access control to those individuals who require access to the Confidential Information to perform the Work under this Agreement;

(e) keep all records with City's Confidential Information related to this Agreement separate from Supplier's own information and records;

(f) have physically secure perimeters, and external entry points must be protected against unauthorized access; access to all locations shall be limited to Supplier Representatives and authorized visitors; and reception areas, if any, must have means to control physical access;

(g) restrict access to areas where City's Confidential Information is stored or can be accessed to authorized Supplier Representatives and authorized visitors only; all access to areas where City's Confidential Information is stored or can be accessed must be monitored, recorded and controlled with physical access rights reviewed annually at a minimum;

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(h) perform full backups of all databases containing City's information on a daily basis and incrementally backed up hourly without interruption of the service or as agreed upon by the Parties;

(i) restrict access to and not disclose, or permit any employee, contractor, agent or other third parties over whom Supplier exercises control to disclose, City's Confidential Information or any part thereof (other than to employees who have a need-to-know and who have agreed to abide by the terms of this Section 19 (Security and Safeguarding of Confidential Information) or as may be otherwise authorized by City);

(j) prior to allowing access to the Confidential Information to an employee or contractor, provide such employee or contractor with training regarding the obligation to keep the Confidential Information confidential and use it only to perform the Work under this Agreement. Supplier must keep a record of such training and make it available to City upon request;

(k) maintain an audit log that electronically records all instances of and attempts to access records containing Confidential Information that are stored electronically. Such audit log must be provided for review to City, upon request; and

(l) if Confidential Information is also kept in hard copy, provide adequate security and access control to such records.

(ii) **MFIPPA**

City cannot guarantee that the confidentiality of any information that is in the custody or control of City will be preserved if a request for access to it is made under MFIPPA. To the extent permitted under MFIPPA, City will notify Supplier of any such request for any records related to this Agreement that City believes may reveal a trade secret or scientific, technical, commercial, financial or labour relations information supplied in confidence by Supplier to City so that Supplier will have an opportunity to make representations to City (or its delegate) with respect to the proposed disclosure.

Supplier will provide City with information, cooperation and assistance, as requested by City from time to time, in order to enable City to comply with any and all requirements to which City is subject under any Applicable Laws (including regulations and common law) pertaining to access to information.

(iii) **Requests Relating to Personal Information**

Supplier will keep a record of all requests made by any individual to review or access their Personal Information, and any requests to correct errors or omissions in the Personal Information collected on behalf of City as part of this Agreement. Supplier will promptly refer to City any requests received for access to, amendment of or complaints about Personal Information, and to co-operate with City in providing timely access to the same.

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In response to any such request, Supplier will amend, rectify, delete or update Personal Information only upon receiving instructions from City to do so.

(iv) **Breach Response**

(a) If Supplier becomes aware of a suspected Breach, it shall take all responsible measures to investigate such Breach and if such Breach is substantiated, it shall take all measures described in this Section 19(iv) (Breach Response).

(b) Supplier agrees to notify City without undue delay, and in any case within seventy-two (72) hours, upon becoming aware of a Breach. Supplier shall provide City with all information required by City as it becomes known (including the details of any affected Parties in the case of a Breach pertaining to Confidential Information) to allow City to meet any obligations to report the Breach to regulatory authority or other entity, or to notify the individuals affected, as necessary or required under Applicable Laws. At minimum, Supplier will provide City with the following information:

(1) the description of the nature of the Breach, including where possible the categories and approximate numbers of individuals concerned, and the categories of Confidential Information and numbers of records concerned;

(2) the name and contact details of the relevant contact from whom more information may be obtained;

(3) the effect, if known, of the breach, loss or unauthorized use, disclosure, acquisition of, or access to, any Confidential Information or systems used for processing Confidential Information; and

(4) the corrective action taken or to be taken by Supplier.

(c) Supplier shall promptly take all necessary and advisable corrective actions, and shall cooperate fully with City (including any third parties retained by City), in all reasonable and lawful efforts to investigate, prevent, mitigate or rectify such breach, loss or unauthorized use, disclosure, acquisition or access to the Confidential Information.

(d) In the event of a Breach, Privacy Contact or a delegate of the Privacy Contact will be available at all times (including outside of Business Hours) from the time that Supplier becomes aware of such Breach until the later of the following events: (i) seventy-two (72) hours have passed since City was first notified of the Breach; (ii) it is demonstrated that no safeguards have failed; (iii) the Breach is over; and (iv) Supplier has fulfilled its obligations hereunder.

(e) Supplier shall cooperate with City and shall assist City in, any remedial measures (including any notification requirements) that City reasonably requests of Supplier, including issuing notifications, or obtaining credit protection. All such cooperation and remedial measures shall be at Supplier's expense unless the Breach was due

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to the misconduct or negligent act of City.

(f) Supplier shall continue to investigate the Breach and share the findings of its investigation into the underlying Breach with City.

20. PUBLICITY AND USE OF NAMES

(i) Any news release, public announcement, advertisement, or publicity released by Supplier concerning this Agreement will be subject to the prior written approval of City and any third parties as requested by City. Any such publicity shall give due credit to the contributions of City.

(ii) Supplier shall not use City's name, logo, trademark, insignia or other intellectual property without City's prior written consent or the execution of a trademark licensing agreement. Supplier agrees that if the City consents to Supplier using City's name, logo or trademark during the Term of the Agreement, Supplier shall only use City's pre-approved logos or trademarks and shall comply with all City's instructions with respect to such use, including without limitation, any applicable City usage guidelines or policies. City may, at any time, revoke its approval or consent to use its name, logo, or trademark or may notify Supplier of any changes required to the name, logo or trademark and Supplier shall, in all cases, promptly comply with such instructions.

(iii) Supplier shall obtain the written consent of City before publishing or issuing any information regarding City or this Agreement.

21. PROPRIETARY RIGHTS

(i) **Pre-existing IP**

(a) Except as expressly set out in this Agreement, the Parties retain all right, title and interest in or to the Pre-existing IP for which each Party or its third-party suppliers own the Intellectual Property Rights. To the extent that City provides any such Pre-existing IP to Supplier for providing the Work, the Pre-existing IP may only be used for providing the Work (including but not limited to responding to technical problems affecting City or its Representatives). To the extent a license to use any Supplier Pre-existing IP is reasonably necessary for City or its users to use or receive the Work, Supplier grants to City and its users all licenses required.

(ii) **Ownership of Deliverables**

When a Deliverable created in the course of undertaking the Work is a modification or enhancement to one of Supplier's Pre-existing IP, the new work is deemed to be one of Supplier's Pre-existing IP. For all other Deliverables created in the course of undertaking the Work, Supplier irrevocably assigns to and in favour of City all Intellectual Property Rights, and all other right, title and interest, in and to the works, which will vest in City immediately upon their creation. To the extent a license to use any Supplier Pre-existing

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IP is reasonably necessary for City or its users to use or receive the Deliverable, Supplier grants to City and its users all licenses required.

(iii) **Ownership of Reports**

Supplier will deliver to City any Report reasonably requested by City. All Reports will be in a format acceptable to City acting reasonably. Except as expressly set out in this Agreement, City retains all right, title and interest in or to the Reports. To the extent any Report contains Supplier's Pre-existing IP, Supplier shall provide City with a perpetual, irrevocable, royalty-free, non-exclusive and transferable license to use, copy, modify and prepare derivative works of Supplier's Pre-existing IP included in such Report and any applicable Intellectual Property Rights therein as required by City to use the Report as City deems appropriate.

(iv) **Data Collected, Processed or Generated**

Supplier acknowledges and agrees that all data which is: (i) inserted, collected, forwarded, processed or generated by or through City's use of Supplier or the Work; (ii) placed in the custody or control of Supplier; (iii) created by City by using Supplier or the Work, or in each case, any data derived therefrom, shall belong to City and that Supplier shall not have any ownership or any Intellectual Property Rights therein. For the avoidance of doubt, any Reports shall be exclusively owned by City and shall be City's intellectual property and Confidential Information.

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22. **SERVICE LEVELS**

(i) Supplier agrees that it shall do the following with respect to its service levels:

(a) provide the Work so as to meet or exceed all Service Level Metrics; and

(b) promptly remedy any failure to do so.

(ii) Supplier is responsible for reporting its performance with respect to all Service Level Metrics, and such Reports will include reasonable evidence to support each claim that a Service Level Metric has been met. Supplier will provide such Reports to City on a bi-annual basis, unless otherwise agreed to by City in writing. In the event that the Work fails to comply with the Service Level Metrics, Supplier shall diligently and promptly (upon becoming aware of such failure or breach) report same to City with reasonably complete and accurate information concerning same. Unless otherwise requested by City, and without limiting any remedies available to City for Supplier's failure to comply with its Service Level Metrics, Supplier shall, at its sole cost and expense, take all steps necessary to correct the service level breach, and to bring the performance of the Work into compliance with this Agreement as soon as reasonably possible. Any remedies for failing to comply with any Service Level Metric will be set out in the applicable service level agreement, SOW, Bid Request, or Agreement, together with how they will be applied. Such remedies are not a replacement for any other remedies available to City under the Agreement or at law.

23. REPRESENTATIONS AND WARRANTIES OF SUPPLIER

The Supplier hereby represents and warrants to the City as follows:

(i) If Supplier is a corporation: is a duly incorporated, organized and subsisting corporation and has all requisite powers, capacities, authorities, permits, licences and permissions under its governing legislation and other Applicable Laws, and under its Articles of Incorporation and by-laws under which it is organized, to carry on all businesses in which Supplier is engaged; and enter into, exercise its rights and perform and comply with its responsibilities and obligations under this Agreement; and that all actions, conditions and things have been done, taken or fulfilled with respect thereto, that are required by Applicable Laws, Agreement or otherwise;

(ii) If Supplier is an entity other than a corporation: is duly registered as a business under all applicable legislation, and as such has all requisite powers, capacities, authorities, permits, licences and permissions under its governing legislation and other Applicable Laws, to carry on all businesses in which Supplier is engaged; enter into, exercise its rights and perform and comply with its responsibilities and obligations under this Agreement; and that all actions, conditions and things have been done, taken or fulfilled with respect thereto, that are required by Applicable Law, Agreement or otherwise;

(iii) Supplier and its Subcontractors and the respective workforce of each are fully qualified and shall remain fully qualified for the duration of this Agreement to perform the Work and hold all certifications, requisite permits, licences, franchises and other authorizations required by this Agreement, and by Applicable Laws, and otherwise with respect thereto;

(iv) Supplier is not a party to any agreement under the terms of which Supplier is prohibited or restricted from entering into any of the obligations assumed, liabilities imposed, or restrictions accepted by Supplier under this Agreement;

(v) To the best of Supplier's information and belief and after making diligent enquiries:

(a) The information concerning the business, affairs and financial and other condition of Supplier that are contained in all documents, memoranda, records, statements made, sent or given by Supplier to City prior to entering into this Agreement, and in its current regulatory filings, are true and accurate in all material respects; and

(b) Supplier is not aware of any material facts or circumstances having a bearing upon its ability to perform its obligations under this Agreement which have not been disclosed to City in writing, and should it become aware of any material facts or circumstances having a bearing upon its ability to perform its obligations under this Agreement, it shall immediately advise City in writing;

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(vi) Supplier has the skill, ability and experience to perform the obligations set out in this Agreement according to the usual practices of the profession or industry and promises to carry out its obligations in accordance with those standards;

(vii) Any obligations of Supplier will be performed in a professional manner consistent with the highest industry standards reasonably applicable to the performance of such obligations;

(viii) Supplier has not employed or retained any person, other than a bona fide employee, agent or broker working for Supplier, to solicit or secure this Agreement, and it has not paid or agreed to pay any person, other than a bona fide employee, agent or broker working solely for Supplier, any fee, commission, percentage, gift or other consideration contingent upon or resulting from the entering into of this Agreement, or as an inducement to enter into this Agreement. No elected official, officer, employee of City shall enjoy a direct or indirect interest in this Agreement or any subcontract under this Agreement, nor does any such official, officer or employee have a direct or indirect interest in Supplier;

(ix) Supplier is now in strict compliance with, and covenants that it will continue to strictly comply with, any and all Applicable Laws. Supplier will provide confirmation of such compliance to City, promptly upon City's request; and

(x) there is no action, order, writ, injunction, judgment or decree outstanding or claim, suit, litigation, proceeding, labor dispute, arbitral action or investigation pending, or to the actual knowledge of Supplier, threatened against or relating to Supplier that would have a material adverse effect on this Agreement or Supplier's ability to perform the Services.

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24. **INDEMNITIES**

(i) **Indemnity from Supplier to the City**

Supplier shall, both during and following the Term of this Agreement, save harmless, defend and fully indemnify City and its elected officials, officers, employees, agents, representatives, successors and assigns (the "**Indemnified Persons**") from and against all Claims, any loss, costs, damages or expenses (including reasonable legal fees disbursements, settlements, awarded damages and court costs) which City and/or any of the Indemnified Persons may sustain, suffer, incur or be liable for, resulting from, arising from or in any way related to or as a result of:

(a) any property damage, either real or personal and either owned by City or others, howsoever occasioned, by Supplier, or its Subcontractors or Representatives performing work under this Agreement

(b) any personal or bodily injury to any person or persons, including death resulting at any time therefrom, howsoever occasioned by Supplier or its Subcontractors or Representatives performing work under this Agreement; and

(c) Supplier's fraud, negligence or willful misconduct of Supplier, or its Subcontractors

or Representatives in the performance of its obligations under this Agreement; and

(d) any Breach (as defined above) or other breach (including non-performance) of the confidentiality, privacy, and security provisions of this Agreement.

(ii) **Intellectual Property Indemnity**

(a) Supplier shall, both during and following the Term of this Agreement, save harmless, defend and fully indemnify the Indemnified Persons from and against all Claims, any loss, costs, damages or expenses (including reasonable legal fees disbursements, settlements, awarded damages and court costs) which City and/or any of the Indemnified Persons may sustain, suffer, incur or be liable for, resulting from, arising from or in any way related to or as a result of an actual or alleged claim that the operation or use of any of the Work infringes any third-party's Intellectual Property Rights ("**Infringing IP**"). City agrees that:

(1) it will notify Supplier of any matter in respect of which the foregoing may apply and of which City has knowledge;

(2) Supplier has sole control over the defence, settlement or compromise of any such action; and

(3) subject to Section 24(ii)(b) (Intellectual Property Indemnity), if the Work (or any part thereof) becomes, or in Supplier's opinion is likely to become, the subject of a Claim based on an alleged infringement or breach as aforesaid, Supplier may, at its expense, with prior written notice to City, do one of the following:

(A) modify the applicable part of its Work so that there is no longer any infringement or breach, provided that such modification does not adversely affect the operation, security, or functionality of the Work as set out herein;

(B) procure for City the right to continue to use the applicable part of the Work; or

(C) replace same with an equally suitable, functionally equivalent, compatible, non-infringing component, as applicable.

(b) Notwithstanding the foregoing, if City deems, in its sole and unfettered discretion, that none of the foregoing alternatives set out in Section 24(ii)(a)(3) (Intellectual Property Indemnity) are desirable, City shall have the right and option to obtain a refund from the Supplier for such infringing item or part thereof, on prior written notice to the Supplier.

(iii) **Indemnity Process**

(a) If requested by City, Supplier will also defend at its own cost and expense any

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Claim, brought against City or any of its Representatives as described in this Section 24 (Indemnities).

(b) In relation to any Claim incurred by City or its Representatives that may give rise to an obligation to indemnify pursuant to this Section 24 (Indemnities), City will: (i) give Supplier prompt notice of such Claim; (ii) not take any action that might compromise Supplier's ability to defend or settle such Claim; and (iii) at Supplier's cost, provide Supplier with reasonable assistance relating to the defence or settlement of such Claim (including responding to reasonable requests for information from Supplier). No settlement of a Claim that involves a remedy other than the payment of money by Supplier will be entered into without the approval of the Indemnified Person.

25. LIMITATION OF LIABILITY

(i) Exclusions

THE LIMITATIONS OF LIABILITY SET OUT IN THIS SECTION 25 (LIMITATION OF LIABILITY) DO NOT APPLY TO ANY CLAIM (AS DEFINED IN THIS AGREEMENT) OR OTHER LIABILITY ARISING FROM OR RELATING TO: (I) FRAUD, NEGLIGENCE,OR WILFUL MISCONDUCT; (II) ANY PERSONAL OR BODILY INJURY (INCLUDING DEATH) TO ANY PERSON OR PERSONS; (III) ANY PROPERTY DAMAGE, EITHER REAL OR PERSONAL (IV) BREACHES OF CONFIDENTIALITY, PRIVACY OR SECURITY, OR (V) ANY INDEMNITY IN THIS AGREEMENT. OTHERWISE, THE PROVISIONS LIMITING THE LIABILITY WILL APPLY REGARDLESS OF THE FORM OR CAUSE OF ACTION, WHETHER IN CONTRACT OR TORT, OR A BREACH OF A FUNDAMENTAL TERM OR CONDITION OR A FAILURE OF ESSENTIAL PURPOSE.

(ii) Indirect Damages

NEITHER PARTY (INCLUDING ITS REPRESENTATIVES) WILL BE LIABLE TO THE OTHER IN ANY WAY WHATSOEVER, FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR EXEMPLARY DAMAGES INCURRED BY THE OTHER PARTY (INCLUDING FOR LOSS OF REVENUE OR PROFITS). THIS LIMITATION WILL APPLY WHETHER OR NOT SUCH DAMAGES ARE FORESEEABLE, OR WHETHER THE DEFAULTING PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. **Direct Damages**

THE PARTIES AGREE THAT THE LIABILITY OF EACH PARTY FOR ANY CLAIM (AS DEFINED IN THIS AGREEMENT) ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT WILL BE LIMITED TO DIRECT DAMAGES ACTUALLY INCURRED BY THE CLAIMING PARTY BUT ONLY TO THE HIGHER OF THE TOTAL VALUE OF THE AGREEMENT OR FIVE MILLION DOLLARS ($5,000,0000).

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26. INSURANCE

(i) Without limiting the indemnification provisions of this Agreement, Supplier shall, at its sole cost and expense, obtain and maintain in full force and effect at all times throughout the Term of this Agreement, insurance satisfactory to City, with financially sound and reputable insurance companies licensed to underwrite insurance in the Province of Ontario. Supplier shall be responsible for payment of all amounts within the deductible or self-insured retention under each policy of insurance. All insurance policies required pursuant to this clause shall be primary and shall not call into contribution any insurance available to City. The insurance shall include but not be limited to the following:

(a) **Commercial General Liability insurance** for all services and operations of Supplier as described in this Agreement against claims for bodily injury, including personal injury and death, and property damage or loss, indemnifying and protecting Supplier, their respective employees, servants, agents, sub-consultants, invitees or licensees, to the inclusive limit of not less than Five Million Dollars ($5,000,000) Canadian per occurrence. Such insurance shall specifically state by its wording or by endorsement that:

(1) City is included as additional insured under the policy with respect to the liability arising from all operations of Supplier and the performance of the Work as outlined in this Agreement;

(2) the policy includes blanket contractual liability, non-owned automobile liability, products and completed operations coverage, owners and Supplier's protective coverage, contingent employer's liability, and employees as additional insureds;

(3) if applicable, tenant's legal liability in an amount equivalent to the full replacement value of the property in tenant's care, custody or control;

(4) the policy contains a cross-liability clause which shall have the effect of insuring each person, firm or corporation named in the policy as an insured in the same manner and to the same extent as if a separate policy had been issued to each; and

(5) a waiver of subrogation rights which the insurers may have against City and against those for whom City is in law responsible.

(b) **Professional Liability or Errors and Omissions Insurance** in the amount of not less than Two Million Dollars ($2,000,000) Canadian dollars per claim and shall continue for twelve (12) months following completion of work.

(c) **Network/Cyber Security and Privacy Liability Insurance** which shall be a standalone cyber insurance policy and shall cover liability for financial loss, imposed by law or assumed under contract for the failure or breach of network security, failure to safeguard against breach caused by hacking or viruses, unauthorized release of and/or failure to protect private personal or corporation information, theft of hardware on which data is stored, and costs to restore and/or

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recreate lost data. Such insurance shall be in an amount of at least Five Million ($5,000,000) Canadian dollars per claim, and shall be on a claims made basis and provide for full defense costs.

(d) If applicable, Automobile liability insurance with limits of not less than Two Million Dollars ($2,000,000) Canadian per occurrence, and must provide coverage for bodily injury or property damage arising out of the ownership use or operation of all owned and/or leased automobiles.

(ii) Prior to the award of any contract for service, Supplier shall deliver to City completed City of Mississauga Certificate of Insurance Form(s) evidencing the insurance required under this Agreement. Fillable PDF City of Mississauga Certificates of Insurance can be found at:
www.mississauga.ca/certificateofinsurance.

Certificates shall be addressed to:

300 City Centre Drive, Mississauga, ON L5B 3C1

Attention: Andy Nguyen

Email: andy.nguyen@mississauga.ca

This certificate must be completed, broker/insurer dated and signed (digitally or otherwise) by an authorized insurance representative.

Thereafter and throughout the Term of this Agreement, Supplier shall deliver to City any renewal certificate of insurance evidencing that the insurance required under this Agreement continues in effect. Supplier will also provide an updated certificate of insurance if any material changes affecting this Agreement occur, or if there are any changes in Supplier's insurance providers or policy numbers.

(iii) In the event the aforementioned policies are terminated, cancelled or materially altered affecting the coverages required under this Agreement, Supplier shall provide written notice of such termination, cancellation or material alteration to City at least thirty (30) days before the effective date.

(iv) City acknowledges that some insurance requirements contained in this Agreement may be fulfilled by self-insurance on the part of Supplier. Supplier's obligation hereunder may be satisfied in whole or in part by adequately funded self-insurance programs or self-insured retentions, provided however, that this shall not in any way limit the liabilities assumed by Supplier under this Agreement and Supplier shall provide City with the same protection from liability and defense of claims as would be afforded by first dollar insurance. Any self-insurance at or above $2,000,000 shall require the written approval of City's Contact upon satisfactory evidence of the Supplier's capacity.

(v) City's acceptance of Supplier's delivery of City's Certificate of Insurance forms, or any other document evidencing the policies of insurance Supplier is required to maintain

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hereunder does not constitute approval or agreement by City that the insurance requirements have been met or that the insurance policies are in compliance with the requirements of this Agreement. Failure by City to identify a deficiency from evidence provided will not be construed as a waiver of Supplier's obligation to maintain the insurance policies it is required to maintain pursuant to this Agreement.

27. **WSIB**

(i) Subject to Section 27(iii) (WSIB), Supplier prior to commencing the Work,

(a) Shall submit to City an original Clearance Certificate from the Ontario Workplace Safety and Insurance Board ("**WSIB**") and shall provide additional certificates with respect to such coverage as often as City deems necessary during the term of this Agreement to ensure continued good standing with the Workplace Safety and Insurance Board; or

(b) Furnish proof in a form satisfactory to City from the Workplace Safety and Insurance Board that Supplier does not require Workplace Safety and Insurance Board insurance, but in such a case if Supplier changes its status during the term of this Agreement so that such coverage is required, Supplier shall immediately provide City with the certificate required under paragraph (a).

(ii) Where a substantial portion of the Work is to be carried out by a Subcontractor, City may require Supplier to furnish the same evidence as provided under Section 27(i) (WSIB) and Section 27(ii) (WSIB), or under Section 27(iii) (WSIB), as applicable for that Subcontractor.

(iii) Notwithstanding Section 27(i) (WSIB) and Section 27(ii) (WSIB), where Supplier is not subject to the jurisdiction of the WSIB, it shall provide satisfactory written evidence to City that it is compliant with an alternate government employer insurance regime (including any workers' or employees' compensation for injuries or accidents at work regime). Such evidence shall include, without limitation, documentation satisfactory to City of such compliance.

28. **OCCUPATIONAL HEALTH AND SAFETY**

(i) City shall in no way be considered the constructor or employer with respect to any part of the Work for the purposes of the Occupational Health and Safety Act.

29. **ACCESSIBILITY**

(i) When specified in a Bid Request, Supplier must provide training on City's accessibility standards to all of its employees and sub-contractors who will be delivering services to City that require engagement with the public.

(ii) At a minimum, Supplier shall provide its Representatives with: (a) a copy of City's Manual as provided by City to Supplier; and (b) to the extent applicable, a copy of City's Accessibility Policy (Policy Number 03-08-05) ("**Accessibility Policy**"), available at

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https://www.mississauga.ca/publication/accessibility-policy/. Supplier shall require Representatives to read City's Manual prior to starting any Work for City, including, to the extent applicable, the Accessibility Policy. Supplier agrees that new training may be required from time to time should City's Manual, or to the extent applicable, the Accessibility Policy, be amended, and Supplier shall deliver such new training in accordance with the standard of training as provided in this Section 29 (Accessibility). Supplier shall also maintain a record of all training ("**Record of Training**") provided to Supplier Representatives on City's accessible customer service and IASR standards as required under this Section 29 (Accessibility), which shall include at a minimum the dates on which the training is provided and the number of individuals to whom the training is provided. Supplier shall retain such Record of Training during the Term of the Agreement and for at least seven (7) years following its termination or expiry. City may, at any time and from time to time during the Term of the Agreement and seven (7) years following its termination or expiry, audit and inspect Supplier's records of accessible customer service training.

(iii) Supplier shall make available to City the Record of Training in order that City may carry out audits and inspections referred to in this Section 29 (Accessibility) and shall provide City and its authorized Representatives with all such information as they may from time to time reasonably require with reference to such records. Supplier shall provide any required records of accessible customer service training to City within ten (10) Business Days of City's request, unless otherwise agreed upon by City. Supplier shall provide City with any other materials referred to in this Section 29 (Accessibility) within such time frame as City may reasonably request.

(iv) Supplier hereby represents, warrants and covenants that the performance, operations and functionality of the Work, including the improvement, upgrade, implementation and enhancement of such Work, shall meet all accessibility standards as stipulated in the *Accessibility for Ontarians with Disabilities Act, 2005* (under information and communication requirements therein).

30. **GENERAL**

(i) **Non-exclusive**

Nothing in this Agreement constitutes a guarantee that City will acquire any volume or value of deliverables or any services from Supplier, and City reserves the right to procure any deliverables or services from any other Person.

(ii) **Amendment**

No amendment of this Agreement shall be deemed valid unless reduced to writing and signed by both Parties.

(iii) **Waiver**

The failure of City to enforce any term or covenant or obligation of Supplier shall not be deemed to be a waiver of the term, covenant or obligation or permission for any

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subsequent breach and City may at any time enforce the term, covenant or obligation and exercise any remedy arising from such breach of this Agreement. No term, covenant or obligation contained in this Agreement may be waived by City, unless the waiver is in writing and executed by City.

(iv) **Entire Agreement**

This Agreement and all SOWs constitutes the complete and exclusive agreement between the Parties with respect to the subject matter hereof and supersedes and replaces any and all prior or contemporaneous discussions, negotiations, understandings and agreements, written and oral, regarding such subject matter. Without limiting the previous sentence, any terms contained in any click-wrap agreement, shrink-wrap agreement, browse-wrap license, documentation provided to City, invoice, web site or in any other form of agreement presented or delivered to City in connection with the Work shall not be effective unless the City has agreed in a written amendment to the Agreement to be bound by the terms of that agreement or other document.

(v) **Further Assurances**

Each Party shall, from time to time, and upon reasonable request by the other Party, execute, perform and make or cause to be executed, performed and made all such further acts, deeds, assurances and things as may be reasonably required in order to give full effect to this Agreement. Time is of the essence hereof.

(vi) **Reference to Law and Policy**

A reference to any law or policy or to a provision thereof shall be deemed to include a reference to any law or policy enacted in substitution thereof or amendment thereof.

(vii) **Governing Law**

THIS AGREEMENT WILL BE GOVERNED BY AND CONSTRUED UNDER THE LAWS OF THE PROVINCE OF ONTARIO AND THE FEDERAL LAWS APPLICABLE THEREIN. IT WILL NOT BE GOVERNED BY THE UNITED NATIONS CONVENTION ON CONTRACTS FOR THE INTERNATIONAL SALE OF GOODS, THE APPLICATION OF WHICH IS EXPRESSLY EXCLUDED.

(viii) **Attornment**

The Parties agree that:

(a) Any action or proceeding relating to this Agreement (including any motion or other interlocutory proceeding) shall be brought in a court or a tribunal, whichever may be applicable, sitting in Mississauga and for that purpose each Party irrevocably and unconditionally attorns and submits to the jurisdiction of that court;

(b) In the event that there is no applicable court or tribunal sitting in Mississauga, the proceeding shall be brought in the court (or other forum) of competent jurisdiction

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nearest to Mississauga;

(c) They irrevocably waive any right to, and will not, oppose any action or proceeding relating to this Agreement as aforementioned on any jurisdictional basis, including *forum non conveniens*; and

(d) They will not oppose the enforcement against them, in any other jurisdiction, of any judgment or order duly obtained from the court as contemplated by this Section 30(viii) (Attornment).

(ix) **Accounting**

All accounting terms have the meaning recognized by or ascribed to those terms by the Canadian Institute of Chartered Accountants.

(x) **Currency**

Unless otherwise expressly provided, all amounts in this Agreement are stated and shall be paid in Canadian currency.

(xi) **Invalidity**

If any provision or provisions of this Agreement or parts thereof or the application thereof to any person or circumstances shall be found by any court of competent jurisdiction to any extent to be invalid or unenforceable or to be void or illegal, such provision or provisions or parts thereof shall be deemed severable and all other provision or provisions or parts of this Agreement shall be deemed to be separate and independent therefrom and continue in full force and effect unless and until similarly found void and/or illegal. The remainder of this Agreement and its application to any person or circumstances shall not be affected thereby; and the Parties hereto shall negotiate in good faith to amend this Agreement to implement the intentions set forth herein. Each provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law.

(xii) **Current Time**

All references to time shall be deemed to be references to current time in Mississauga, Ontario.

(xiii) **Officers of City**

Any reference to an officer of City shall be construed to mean the person holding that office from time to time, and the designate or deputy of that person, and shall be deemed to include a reference to any person holding a successor office or the designate or deputy of that person.

(xiv) **Abbreviations**

Any words and abbreviations, which have well-known professional, technical or trade

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meanings, are used in this Agreement in accordance with such recognized meanings.

(xv) **Approvals**

Without modifying any Acceptance provision in the Schedules, anything in this Agreement requiring the approval of City or City's Contact, shall not be undertaken until such approval is given. Where this Agreement requires Supplier to submit a plan, schedule, design, document, information or any other thing which requires the approval of City or City's Contact, and where City or City's Contact requires revisions to the plan, schedule, design, document, information or other thing before providing its approval, Supplier shall forthwith undertake such revisions and again seek City's or City's Contact's approval and shall continue undertaking revisions until City's or City's Contact's approval has been given. City or City's Contact may exercise absolute discretion in granting or withholding such approval and may require Supplier to apply for such approval using form(s) prescribed by City or City's Contact.

(xvi) **Relationship Between Parties**

This Agreement shall not be construed to constitute an agency, partnership or joint venture between Supplier and City. Neither City nor Supplier will have the power to bind the other or incur obligations on the other's behalf without the other's prior written consent.

(xvii) **Enurement**

This Agreement shall be binding upon and shall enure to the benefit of City and Supplier and their respective heirs, executors, administrators and permitted assigns and successors.

(xviii) **Survival**

All obligations of the Parties shall expressly, or by their nature, survive termination or expiry of this Agreement until, and unless, they are fulfilled, or by their nature expire or until the Parties mutually agree to a release of the obligation.

(xix) **Assignment**

(a) The Supplier shall not assign, transfer or encumber in any manner this Agreement or part thereof, without the prior written approval of the City. Any attempt to assign, transfer or encumber any of the rights, duties or obligations of this Agreement without such approval of the City is void. An "assignment" herein includes any reorganization, amalgamation, bulk sale of assets, dissolution, any transfer or issue by sale, assignment, bequest, inheritance, operation of law, or other disposition, or by subscription, of any part, or all of, the shares or units of the Supplier which would result in any change in the direct or indirect control of the Supplier, or other restructuring of any material kind.

(b) No assignment by the Supplier shall relieve the Supplier of any responsibility for the full performance of all its obligations under this Agreement.

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(c) The Supplier shall not change its corporate name without the prior written approval of the City, which approval shall not be unreasonably withheld.

(d) Supplier shall be responsible for costs of City to investigate and consider a proposed assignee or corporate name change in accordance with the City's User Fees and Charges By-law.

(e) The City may, at its sole discretion, assign this Agreement.

(xx) **Force Majeure**

(a) In this Section, "**Force Majeure**" means a delay in the performance of the Work occurring other than as a result of the deliberate act or negligence of either Party respectively, and which

(1) Could not have been reasonably foreseen, and

(2) Was caused by an event beyond the reasonable control of each Party respectively, and for the sake of greater certainty shall include, without limitation, any one or more of the following:

(A) Acts of God;

(B) Civil war; insurrections or riots;

(C) Fires; floods; explosions; earthquakes or serious major accidents;

(D) Unusually severe weather; pandemics, epidemics or quarantine restrictions;

(E) Governmental priorities or allocation regulations or orders affecting materials, labour, equipment and facilities; or

(F) Fuel shortages or freight embargoes.

(b) Financial difficulties experienced by Supplier or City will not be considered Force Majeure under this Agreement.

(c) In the event of the occurrence of a Force Majeure:

(1) The Party affected by such failure or delay will give the other Party prompt written notice of the cause;

(2) The time for completing that portion of the Work, or the completion of the Work, which has been delayed by reason of the Force Majeure shall be

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extended by a period equal to the delay so caused;

(3) The date for the payment of any portion of the price or any costs or fees shall be adjusted accordingly, without adjustment of the price; and

(4) The Party claiming the relief of a Force Majeure shall use its best efforts to remedy any delay or non-performance caused by the Force Majeure;

but subject to the foregoing, each Party shall be excused from performance so long as the Force Majeure persists, and shall not be considered to be in default under this Agreement, if and to the extent that its failure of, or delay in performance is due to that Force Majeure.

(d) Where a Force Majeure remains in effect for more than ninety (90) days, either Party may terminate this Agreement upon at least thirty (30) days' written notice to the other Party, provided at the time when that notice is given the Force Majeure is then continuing.

(e) While a Force Majeure exists which prevents the Supplier from performing its obligations with respect to the Work, City may engage another supplier to perform those obligations on an interim basis. If City exercises such right, City shall not be obligated to make any payments or compensation to Supplier during the time that such right is exercised by City. City shall have no liability to Supplier or any other person for any claims, demands, actions, causes of action, interest, costs, damages, expenses, fines, penalties, loss, suits or other proceedings for loss, damage, injury or death resulting from any such action or performance of this Agreement, or any part thereof, by City or another supplier retained by City, except to the extent that such loss, damage, injury or death results from the negligence or wilful misconduct of City or the substituted supplier.

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(xxi) **Notices**

Any notice given pursuant to this Agreement will be in writing and addressed to the other Party at the address listed below and to the attention of the Party's Contact and its legal department. Any such notice will be deemed to have been received: (i) one (1) Business Day following deposit with a globally recognized overnight delivery service, all delivery charges pre-paid; (ii) one (1) Business Day following personal delivery; or (iii) on the day an email is sent provided that: (a) the recipient of the email address responds to or acknowledges such email notice, except that any automated response (including any out of office response, or failure of delivery response indicating the email notice has not been delivered) received by the Party sending the e-mail notice shall not be, nor deemed to be, acknowledgement of such email notice by the other Party, or (b) the same notice is promptly delivered by a globally recognized overnight delivery service or delivered personally. Either Party may designate a different address by notice to the other given in accordance with this Section 30(xxi) (Notices).

To the City:

300 City Centre Drive
Mississauga ON
L5B 3C1
Telephone: 905-615-3200

City Contact: Andy Nguyen
Telephone: 905-615-3200 ext. 3231
Email: andy.nguyen@mississauga.ca

To the Supplier:
[insert address]
Supplier Contact: •
Telephone: •
Email: •

[***SIGNATURE PAGE TO FOLLOW***]

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THE CORPORATION OF THE CITY OF MISSISSAUGA	**[INSERT SUPPLIER NAME]**
Signature	Signature
Print Name	Print Name
Title	Title
I have the authority to bind the corporation.	I have the authority to bind the corporation.

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SCHEDULE – STATEMENT OF WORK

[INSERT STATEMENT OF WORK]

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SCHEDULE – PRICING

[**TO BE INSERTED FROM BID**]

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SOFTWARE SCHEDULE – SAAS

1. DEFINITIONS

Whenever used in this Schedule, the following words have the following meanings:

"**Acceptance**" means that City has approved the SaaS in a written document signed by one of City's authorized signing officers;

"**Configuration**" has the meaning given to it in Section 3 (Use Restrictions on the SaaS) of this Schedule or as otherwise contained in an SOW;

"**Hosting Services**" has the meaning given to it in Section 9 (Hosting Services) of this Schedule;

"**Principle of Least Privilege**" means restricting access rights to the minimum privileges necessary for an individual to perform his or her role;

"Recovery Point Objective" or **"RPO"** means, if a restore is needed, then the maximum amount of time between the restore of data and the last useable backup that will be used for such restore;

"Recovery Time Objective" or "RTO" means the maximum amount of time required to restore the system after any of the following have occurred: i) City has no ability to access the SaaS; ii) data integrity at risk; iii) an issue is determined to be critical by City; or iv) an issue results in City's inability to use the SaaS for the intended purpose and there is no workaround that is satisfactory to City;

"**SaaS**" refers to the software used by Supplier to provide any cloud-based service with respect to the online submission management software including all Updates, Upgrades, fixes, patches, improvements and enhancements thereto;

"**Service Data**" means any data collected by or on behalf of Supplier relating to the operation of the cloud-based services to support or document City's use of the cloud-based services; Service Data is considered to be City's Confidential Information;

"**Software License**" has the meaning given to it in Section 2 (Grant of License) of this Schedule;

"**Supplier Systems**" means Supplier's devices, network(s), operating systems, infrastructure, applications, and/or SaaS used in the provision of the Work;

"**Updates**" means an improvement to the SaaS which provides bug fixes and minor enhancements to the SaaS that Supplier makes available at no cost to City;

"**Upgrades**" is a replacement to newer minor and major versions of SaaS that Supplier makes available at no cost to City;

"**Use Data**" means: (i) any data placed in the custody or control of Supplier by City or its Users; (ii) any data created by City or its Users using the SaaS; and (iii) any data derived from the data described in (i) or (ii). Use Data is considered to be City's Confidential Information;

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"**User(s)**" means any individual Person authorized by City to use all or part of the SaaS which includes City Representatives; and

"**User Account Information**" relates to an individual User and may include the User's first and last name, username or contact information.

2. **GRANT OF LICENSE**

(i) Supplier hereby grants City a worldwide, royalty-free, fully paid up, non-exclusive, non-transferable license, and shall entitle Users, to access and use the SaaS (including any applications and tools made available as part of the SaaS or Services) during the Term as necessary for the business operations of City, including for City's patrons, residents, and customers to submit applications and other requests via the externally facing instance of the SaaS ("**Software License**"). Supplier agrees to the following with respect to the Software License:

(a) Updates, Upgrades, patches, and new versions of the SaaS shall be deemed to be the SaaS and licensed to City on the same terms and conditions that would have otherwise applied to the SaaS;

(b) Supplier shall provide to City the necessary passwords, network links or connections to allow City to access the SaaS;

(c) all fees, charges or other costs related to any Software License for the SaaS are included in the purchase price as set out on the relevant **[Purchase Order/Pricing Schedule]** , and no additional payments by City will be required in respect of any such Software License;

(d) the Software License shall allow the City and City Representatives to copy the SaaS for backup and archival purposes, for disaster recovery testing purposes, and as may be reasonably necessary for the installation on the information technology architecture of any User; and

(e) the Software License shall not require that any User comply with any extraterritorial measure of the United States, including any re-export restrictions, if to do so would be in contravention of Canadian law.

(ii) **License to Documentation**. Subject to the terms and conditions contained in this Agreement, Supplier hereby grants to City a worldwide, royalty-free, fully paid up, non-exclusive licence to use the Documentation for the duration of the Software License for City's business purposes in connection with its use of the SaaS. City may distribute the Documentation or otherwise copy or post Documentation on its intranet for the purpose of providing Users with access to it.

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(iii) **Seat License True-Up Terms**

(a) If any SaaS is licensed for a specific quantity as identified in a **[Purchase Order/Pricing Schedule]** and City has used the SaaS in excess of any applicable usage volume limits as specified, Supplier may invoice City for the fee that otherwise would have been payable by City had it purchased a sufficient usage volume limit to address its actual usage if: (i) Supplier has provided City with written notice of such excessive usage; and (ii) City did not properly reduce its usage below the applicable limits within sixty (60) days of being notified of such excessive use.

(iv) If a User ceases to be an employee or contractor of City during the term of a Software License or no longer needs to use the SaaS, and City de-installs the SaaS of such User, a different Representative of City may then use the SaaS using different User Account Information without being deemed an additional User.

3. **USE RESTRICTIONS ON THE SAAS**

City shall not: (i) disassemble, reverse engineer, decompile, or otherwise attempt to derive source code from the SaaS; or (ii) modify, adapt, create derivative works based upon, or translate the SaaS. Notwithstanding the foregoing and for greater certainty, the configuration, adaption, implementation, population or adjustment of any object oriented (i.e., built-in) functionality of the SaaS that does not alter or revise the source code thereof, shall constitute a "**Configuration**" and shall not be a breach of this Agreement. The City shall not be liable for any breach of the foregoing by any User that is not a City staff member or City Representative.

4. **PASSWORDS**

Supplier will, or will authorise a Representative of City to, promptly issue a password for each cloud-based Service to each User for whom City requests a password. Supplier acknowledges that role-based authorizations may be required for Users, and Supplier asserts that the cloud-based Service supports role-based authorizations. Supplier acknowledges that City may permit limited use of the SaaS by residents of City or those who carry on business within City to support interaction between them and City.

5. **PROPRIETARY RIGHTS**

(i) **Data**

Except as expressly set out in this Agreement, City retains all right, title and interest in or to data in its custody or control, any Use Data and any Service Data. To the extent that Supplier has access to such data, the data may only be used for the purpose of providing the SaaS to City.

(ii) **Licenses for Data**

Subject to the terms and conditions of the Agreement, City grants to Supplier a non-exclusive license to use the Use Data and Service Data solely for the purpose of providing

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the SaaS to City. Supplier may not use the Use Data or Service Data for any purpose not stated in this Section 5 (Proprietary Rights) without the express written consent of City.

(iii) **Use Data**

The Services include an export function so that City may export a copy of its then current Use Data from time to time in a commercially reasonable format.

Within three (3) Business Days of the termination or expiration of the Agreement and when requested by City from time to time, Supplier will provide a copy of the then current Use Data and a copy of any Service Data that Supplier has collected, each in a commercially reasonable format, acceptable to City acting reasonably. Notwithstanding Section 17(v)(Confidentiality) of the Agreement, Supplier will maintain a copy of the Use Data and Service Data until the later of the following dates: (i) sixty (60) days after the last day of the Term of this Agreement; and (ii) the date on which City confirms in writing that the last copy of the Use Data and Service Data provided to City appears to be complete. For clarification and without limiting this Section, any back-up copy made of any portion of the Use Data is also Use Data and any back-up copy made of any portion of the Service Data is also Service Data.

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6. REPRESENTATIONS AND WARRANTIES

Without limiting any other representations and warranties in this Agreement, Supplier represents and warrants to and in favour of City and acknowledges that City is relying thereon as follows:

(i) The SaaS shall not contain any clock, timer, counter, or other limiting or disabling code in its design or routine that would cause the SaaS to be erased, made inoperable or otherwise rendered incapable of performing in accordance with City's requirements or otherwise limit or restrict City's ability to have and use the SaaS;

(ii) Supplier has used and will continue to use industry-leading anti-malware detection tools updated to their latest definitions as well as development methodology and controls, to prevent the SaaS from including, and it has not included nor will it include in the SaaS, any viruses, cancelbots, worms, “time bombs”, backdoors, Trojan horses and other harmful, disruptive, surreptitious or malicious components, code, files, scripts, agents or programs;

(iii) The SaaS does not contain code, including open source code and freeware, that would directly or indirectly: (i) create, or purport to create obligations on City with respect to City’s use or distribution of any software that incorporates, is combined with, or derived from the SaaS; (ii) grant, purport to grant, or require City to grant to any third party any rights or immunities under City’s intellectual property or proprietary rights in any software that incorporates, is combined with, or is derived from the SaaS; and/or (iii) require as a condition of its use, modification, and/or distribution, that any software incorporated into, derived from, or distributed with the SaaS must be disclosed or distributed in any form;

(iv) The SaaS or any part thereof does not contain any programs which are intended to permit unauthorized access, or cause damage to other programs, data or hardware;

(v) The Fees paid for the SaaS is the same or less than the generally available price for the SaaS;

(vi) The SaaS will be free and clear of any and all encumbrances of any kind;

(vii) Supplier is the legal and rightful owner of the SaaS (including Updates, Upgrades, modifications of and/or enhancements thereto) and all other tangible or intangible materials or goods provided under this Agreement, or is legally licensed and/or authorized to sell and/or distribute the SaaS;

(viii) All Documentation is accurate and provides sufficient instructions to the reader in the operation of the SaaS;

(ix) The SaaS shall be in good operating condition and free of defects in workmanship and function and shall operate in accordance with: (a) any operational, functional, or technical requirements detailed in the Bid Request; (b) this Agreement; (c) the Documentation; (d) the Specifications; and/or (e) any applicable SOW. If the SaaS fails to conform to this warranty, Supplier will promptly correct the noncompliance at no additional cost to City;

(x) The functionality, security, responsiveness and overall operation of the SaaS will not be materially decreased during the term of this Agreement; and

(xi) Any Updates, Upgrades, or any other changes made to the SaaS shall be tested by Supplier prior to their implementation and shall not introduce new risks or vulnerabilities for City;

(xii) All information provided to City in the attached cybersecurity impact assessment ("**CIA**") is, as of the date of execution of this Agreement, true and accurate, and Supplier shall ensure that the functionality, security, and operation of the SaaS are not materially reduced from what is provided for in the CIA; and

(xiii) All information provided to City in the attached privacy impact assessment ("**PIA**") is, as of the date of execution of this Agreement, true and accurate, and Supplier shall ensure that the security and protection of Confidential Information are not materially reduced from what is provided for in the PIA.

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7. **SECURITY**

(i) Data Security

(a) City's Confidential Information must be encrypted when in transit and at rest and Supplier shall protect City's Confidential Information by implementing cryptographic and hashing algorithm types, strength, and key management

processes, consistent with or exceeding current security industry standards. Supplier and Supplier Representatives shall not transfer City's Confidential Information to any portable computing device or any portable storage medium unless it is encrypted consistent with or exceeding current security industry standards. For greater clarity, data backups are considered City's Confidential Information.

(b) For City's Confidential Information hosted in a shared or cloud environment, Supplier shall provide physical and/or logical separation from other Supplier customers' information.

(ii) Identity and Access Management

(a) Supplier shall use the identity store(s) prescribed by City. Notwithstanding the aforementioned requirement, Supplier may utilize a separate identity store, with City's consent, by doing the following:

(1) Implementing authentication measures that meet or exceed industry practices;

(2) Ensuring the identity store(s) have the ability to manage user identities;

(3) Ensuring the identity store(s) have the ability to use role-based access control;

(4) Monitoring and logging events; and

(5) Being able to configure authentication strength to City's satisfaction.

(b) Supplier shall use tiered access to systems and data, and such access shall be aligned with the Principle of Least Privilege.

(iii) Application and Application Interface Security

(a) Supplier shall adhere to industry standard software development models, such as Software Development Life Cycle, IEEE, International Organization for Standardization, or other models that are equally or more stringent. Supplier shall ensure that it has removed all design and security flaws in the SaaS code prior to such SaaS being used in City's environment.

(b) Supplier shall implement processes which require security-related events on each Supplier System to be logged, secured, and maintained for a period of twelve (12) months.

(c) Supplier Systems shall have security controls that can detect and prevent attacks by making use of firewall and intrusion detection and prevention systems. Supplier

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shall ensure that high and critical priority alerts from intrusion detection and prevention systems shall be continuously monitored and promptly responded to.

(d) Supplier shall implement and maintain controls to prevent and detect unauthorized access, intrusions, and malware on all Supplier Systems, which at a minimum include:

(1) client and server-side antivirus programs that include the most current antivirus definitions;

(2) a process that will install any critical patches or security updates for all production and internet-facing environments, within thirty (30) days;

(3) ensuring that only licensed software is installed on the Supplier Systems; and

(4) ensuring the latest software and hardware upgrades and patches have been tested prior to their application to Supplier Systems in order to address all known vulnerabilities.

(e) If applicable, Supplier shall ensure all mobile applications for City use are made available on trusted repositories, as determined by City, such as the App Store and Google Play Store.

(iv) Security Program

(a) Supplier shall adhere to AICPA SOC 2 Type II or equivalent industry recognized security standards certificate (e.g., ISO 27001/2, ISO 27018) and shall provide its latest independent audit full report on at least an annual basis.

(b) To the extent Supplier is using a public, private or other cloud infrastructure computing technology, Supplier shall maintain Cloud Security Alliance STAR Attestation on the entire Cloud Security Alliance Controls Matrix and shall provide its latest independent audit full report and at least on an annual basis and upon immediate recertification of failed controls.

(c) Supplier shall maintain a documented cloud infrastructure security penetration testing process whereby, at least once annually, Supplier shall perform vulnerability scanning and penetration testing of the SaaS and operating environments to determine whether there are any known methods of obtaining unauthorized access to computer systems or networks. Such process shall adhere to NIST framework or another equivalent framework.

(d) Supplier shall maintain current, documented encryption standards that match or exceed industry standards. Supplier will use industry standard secure encryption methods designed to encrypt communications between: (i) all servers; and (ii) all

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client devices and software (such as browsers or applications). Supplier will use industry standard secure encryption methods designed to protect stored Confidential Information of City. All such Confidential Information of City will be stored on server(s) that are not directly accessible from the Internet. At City's request, Supplier shall: (i) provide City with any digital certificates used to encrypt City's Confidential Information such that City is able to decrypt such data; or (ii) promptly upon Supplier's receipt of City's written request, securely dispose of any digital certificates used to encrypt City's Confidential Information and certify such destruction.

(v) Business Continuity

(a) Supplier will maintain a business continuity plan (including disaster recovery and crisis management procedures) designed to provide continuous access to, and support for, the SaaS that Supplier provides to its customers including City. Supplier shall test their disaster recovery procedures annually. The City authorizes Supplier to store City data at a backup data centre in Canada in order to test and prepare for disaster recovery, as well as provide replacement services in the event of a disaster.

(b) Supplier will provide a copy of Supplier's business continuity plan to City promptly upon request.

(c) Supplier must be able to restore City's Confidential Information (and any other data used by Supplier to provide its obligations hereunder) to any point in time.

(d) Supplier will make available to City, at no cost, for download a file of City's Confidential Information in a format approved by City consistent with industry standards.

(e) Recovery Point Objective is one (1) hour. Recovery Time Objective is four (4) hours. Supplier shall recover the data within the RPO and RTO timeframe.

(vi) Change Control

Supplier shall maintain documented change management procedures that provide a consistent approach for controlling and identifying configuration changes on Supplier Systems, which includes segregation of duties and security requirements.

8. ACCEPTANCE TESTING

A Deliverable, or any part thereof, is acceptance tested to determine if it:

(i) substantially meets the requirements set out in the Bid Request (excluding any requirements expressly noted in the Bid as not being met);

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(ii) substantially meets the Specifications, Documentation any other requirements set out in the Agreement, a Statement of Work or otherwise agreed to in writing by City and Supplier;

(iii) is otherwise in compliance with the Agreement; and

(iv) is without defects that would substantially interfere with its use by City.

From the date on which access to the Deliverable or any part thereof is provided to City for review, City will have 20 Business Days to complete its review. If the Deliverable appears to City to be compliant, City will approve the Deliverable or any part thereof in a written document signed by one of City's authorized signing officers ("**Acceptance**"). Otherwise, City will advise Supplier of any deficiencies in writing, and Supplier will remedy the deficiencies (at its sole expense) within seven (7) days (or such longer period as Supplier and City may agree to in writing). For clarification, the City's Acceptance of the Deliverable does not relieve Supplier of any of its obligations under the terms and conditions of the Agreement.

9. HOSTING SERVICES

All infrastructure requirements and all software applications required by Supplier to enable City to access and use the SaaS remotely, including the hosting, operation and connection of the SaaS to the internet (collectively, the "**Hosting Services**") shall be the responsibility of Supplier and there shall be no charge for such Hosting Services other than as specifically set forth in this Agreement. The Hosting Services will be provided at Supplier's data centre located at **[Insert address]** . Except as may be necessary on an emergency basis to maintain the continuity of the Work, Supplier shall not, without City's written approval, move the location where the data centre is located or modify in any material respect:

(i) the composition or nature of the SaaS; or

(ii) the manner in which the SaaS is provided or delivered, if such modification(s) could have a **materially adverse effect on the operation of the SaaS.**

10. MAINTENANCE AND SUPPORT SERVICES

(i) During the Term, Supplier shall, at no additional cost to City:

(a) if, for any reason, the security technologies or protocols of the SaaS become outdated or vulnerable, update the SaaS or any part thereof using new security and privacy technologies and protocols that meet the then current industry standards;

(b) assess, develop, test, provide, and install all applicable SaaS "patches", Updates or Upgrades that become necessary to remedy faults or "bugs" in respect of the SaaS or component thereof that may be identified;

(c) assess, develop, test, provide, and install, all available version Updates and Upgrades, patches, and error corrections in respect of the SaaS as they become reasonably commercially available;

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(d) provide access to reasonable training and technical assistance and/or support in order to enable City Representatives to operate the SaaS in accordance with this Agreement **[as may be further detailed in the SOW/Bid Request]** ; and

(e) Documentation to be used in conjunction with the SaaS, Update or Upgrade will be provided to City by Supplier at the same time as City is provided with access to the SaaS, Update, or Upgrade, as applicable, or earlier.

11. END OF LIFE

Supplier will keep City informed relative to the SaaS life cycle and shall provide City with no less than twelve (12) months' written notice of its intention to discontinue maintenance and support services for the SaaS. Without limiting any other rights or remedies available to City under this Agreement or otherwise at law, if the SaaS reaches end of life during the Term of the Agreement, at City's discretion, Supplier shall: (a) make best efforts to transition City to a substantially similar software; (b) be responsible to reimburse City for any costs or damages incurred by City with respect to such SaaS reaching end of life, including procurement costs associated with finding and using a new solution or supplier; and (c) provide the City with a refund of any unused portion of the prepaid fees for such SaaS.

12. TECHNOLOGY REFRESHES AND IMPROVEMENTS

Supplier agrees that it shall, throughout the Term and at no additional cost, improve, refresh, upgrade, implement and enhance the SaaS, so that the performance, operations and functionality of the SaaS remains reasonably current and up-to-date with the best practices in North America for SaaS of similar functionality.

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SCHEDULE – SERVICES

1. DEFINITIONS

Whenever used in this Schedule, the following words have the following meanings:

"Acceptance" or **"Accepted"** has the meaning given to it in Section 4(iii) (Acceptance Testing) of this Schedule;

"Acceptance Testing" has the meaning given to it in Section 4(i) (Acceptance Testing) of this Schedule;

"Acceptance Testing Plan" has the meaning given to it in Section 4(ii) (Acceptance Testing) of this Schedule;

"**City Device**" means City-issued computer, mobile device, or equipment;

"**City Responsibilities**" has the meaning given to it in Section 5(i) (City Responsibilities) of this Schedule;

"**City Systems**" means City devices, network(s), operating systems, infrastructure, applications, and/or software;

"Final Acceptance" has the meaning given to it in Section 4(iv) (Acceptance Testing) of this Schedule;

"**Key Personnel**" means a Project Manager and any Supplier Representative that: (a) possess skills or knowledge critical for the successful performance of the Services or development of Deliverables; and (b) would cause significant delay to the performance of the Services should they unexpectedly become unavailable to Supplier;

"Non-Conformance Notice" has the meaning given to it in Section 4(iii) (Acceptance Testing) of this Schedule;

"**Performance Milestone**" has the meaning given to it in Section 3(i) (Project Work Plan) of this Schedule;

"**Project Manager**" has the meaning given to it in Section 8(iv)(a) (Supplier Representatives) of this Schedule;

"Service Performance Report" has the meaning given to it in Section 7(i) (Performance Reports) of this Schedule; and

"Supplier Systems" means Supplier's devices, network(s), operating systems, infrastructure, applications, and/or software used in the provision of the Work.

2. APPOINTMENT OF SERVICES

(i) During the Term, City agrees to retain Supplier for project management, project planning, system configuration, testing, training, maintenance, and support of the Deliverables and

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related services, including the creation of any documentation and records related to the foregoing as may be further detailed in a Statement of Work. Supplier agrees to provide such Services (including any and all Deliverables) as listed in and for the Fees identified in the Statement of Work or the Pricing Schedule.

(ii) Supplier acknowledges that the retainer of Supplier hereunder does not guarantee that Supplier will be asked to, or obligate City to ask Supplier to, perform regular, specific or any Services or provide any Deliverables, other than as explicitly agreed to in writing, and Supplier should have no expectation that they will be asked to perform Services or provide Deliverables, under future Statement(s) of Work.

3. **PROJECT WORK PLAN**

(i) Supplier agrees that it shall comply with the applicable timelines and schedules, delivery priorities, deployment milestones, and all other deadlines and time and priority related obligations concerning the provision and performance of the Services and provision of the Deliverables specified in the Statement of Work ("**Performance Milestones**"). Such Performance Milestones shall be delineated in a detailed project work plan within a Statement of Work.

4. **ACCEPTANCE TESTING**

(i) Upon the completion of each Deliverable, Supplier shall provide City with written notice of such completion and readiness for review, inspection, testing, verification, and Acceptance of such Deliverable by City. Upon the issuance of such written notice by Supplier, City shall within ten (10) calendar days (or such other period of time specified in the Acceptance Testing Plan), for the purpose of validating such completion and readiness, conduct an assessment and/or testing thereof that City reasonably determines is necessary and appropriate in relation to such Deliverable ("**Acceptance Testing**").

(ii) To assist and facilitate City's Acceptance Testing, Supplier shall provide City with a recommended Acceptance testing plan ("**Acceptance Testing Plan**"). For greater certainty, City is not bound or obligated to perform the Acceptance Testing as defined in the Acceptance Testing Plan, but may perform other verification and testing that it deems reasonable and necessary to verify and assess the applicable Deliverable.

(iii) City shall be permitted to conduct such review and testing of the Deliverables or any part thereof as it deems appropriate. When City conducts Acceptance Testing on a Deliverable and determines and declares that a Deliverable has satisfied the Acceptance Testing, such declaration by City will be referred to as **"Acceptance"** and the Deliverable will have been "**Accepted**". Where City, acting reasonably, notifies Supplier in writing of any deficiency, error or malfunction ("**Non-Conformance Notice**") identified during its review and testing which City considers any deviation from the Agreement, Supplier will have five (5) Business Days in which to correct each item in the Non-Conformance Notice or deliver and begin to implement a plan reasonably acceptable to City to promptly correct the problem. In such case, any applicable acceptance test period will be extended by the number of Business Days elapsed from the date of the Non-Conformance Notice until

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City's receipt of written notice that the items in the Non-Conformance Notice have been corrected along with receipt of the corrected item, plus an additional ten (10) Business Days to permit validation of corrections by City. City shall make good faith, reasonable efforts to conduct such validation as soon as possible after receiving the corrected item. City shall issue a notice to Supplier advising when it is satisfied with its review and testing and has accepted the corrected Deliverables, such notice not to be unreasonably withheld.

(iv) Final acceptance by City of the Deliverables, as applicable, shall only be achieved if the following have occurred ("**Final Acceptance**"):

(a) quality assurance testing has been completed in accordance with the Acceptance Testing Plan and/or other Acceptance Testing;

(b) each and every element of the Deliverables are functioning properly and error free in accordance with the Acceptance Testing Plan and/or other acceptance testing;

(c) all applicable user manuals and support materials have been delivered to City; and

(d) City has stated in writing to Supplier that all the Deliverables are operating in accordance with all of its requirements in this Agreement.

5. **CITY RESPONSIBILITIES**

(i) Provided that Supplier is not in default under this Agreement, City agrees that it shall provide Supplier with the contributions and other assistance that are expressly specified in the Statement of Work, for the purpose of facilitating the performance of Services and provision of Deliverables by Supplier ("**City Responsibilities**").

(a) Supplier confirms, acknowledges and agrees that the City Responsibilities are the complete delineation of all of the activities, obligations, and responsibilities that Supplier requires of, or from, City in any connection with this Agreement.

(b) City agrees that Supplier shall be relieved from any failure to perform, or for any delay in performing, any part of Supplier's obligations under this Agreement only to the limited extent that any such breach of this Agreement by Supplier is directly caused by such failure of City to perform or provide any City Responsibilities pursuant to this Agreement.

(c) The Parties acknowledge and agree that any failure or deficiency of City to provide or perform all or any part of the City Responsibilities shall not constitute any default or breach of either this Agreement or any other duty (whether in tort, negligence, equity, or otherwise), and that any such failure by City shall not give rise to any liability of City, or of any remedy, compensation right, demand, cause of action, claim, or entitlement by Supplier, or any other person, against City.

6. **INTENTIONALLY DELETED**

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7. PERFORMANCE REPORTS

(i) Upon City's request and subject to Section 21(iii) (Ownership of Reports) of the Agreement, Supplier shall create, maintain and deliver to City written reports (the "**Service Performance Report**") containing accurate, complete and current records, files, and information concerning the Services, including performance reports, change reports and reports on resource utilization that document Supplier's delivery of the Services for the previous period of time, and that is reasonably sufficient to enable City to assess and to review Supplier's compliance with the operational, functional and technical levels in this Agreement.

8. SUPPLIER REPRESENTATIVES

(i) Approved Representatives

(a) Supplier will ensure that its Representatives assigned to provide any Services are qualified to do so, and provided with the necessary materials, tools, and supplies to carry out the Services. City will, upon request, be entitled to review and approve the qualifications of any Representatives that Supplier proposes to assign or has assigned to perform any Service.

(ii) Replacing Representatives

(a) If a Representative of Supplier is a Key Personnel or is listed in this Agreement, SOW or the Bid, as performing an identifiable role or task, Supplier may not replace the Representative without the prior written consent of City.

(b) If City informs Supplier in writing that City is dissatisfied with the performance of any Representative of Supplier assigned to provide any Service, Supplier will take all necessary steps to remedy the problem, but if the problem persists or if requested by City, Supplier will promptly replace the Representative with another Representative at no additional incremental cost to City.

(c) A replacement will possess the minimum levels of qualification and experience for the applicable role, and, in any event, the replacement will be at least as qualified and experienced as the Representatives being replaced.

(iii) Knowledge Sharing

Supplier agrees that the Services expressly include an obligation to effectively collaborate and transfer knowledge to City. Supplier will work with City to ensure ongoing and efficient exchange of knowledge in respect of the Services.

(iv) Project Manager

(a) Each Party will appoint an individual who will serve as the primary representative of such Party under this Agreement (each a "**Project Manager**"). Each Project Manager shall:

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(1) have overall responsibility for managing and coordinating the performance of the Party it represents under this Agreement in a prompt and professional manner;

(2) be authorized to act for and on behalf of the Party it represents under this Agreement;

(3) meet with the other Party's Project Manager at regular agreed-upon intervals to review progress and resolve any issues relating to the Services and/or Deliverables;

(4) attempt to resolve disputes in accordance with this Agreement; and

(5) City's Project Manager will be available as required under the applicable Statement of Work.

9. REPRESENTATIONS AND WARRANTIES

Supplier hereby represents and warrants to and covenants with City that:

(i) the Services will be performed: (a) in a competent, professional and workman-like manner; (b) in a manner that complies with all requirements for the Services set out in the Agreement; and (c) exclusively in Canada unless the applicable SOW sets out otherwise. If any such Service fails to conform to this warranty, Supplier will re-perform it at no additional cost to City. If Supplier is unable to do so, Supplier will refund any Fees paid by City for the applicable Services;

(ii) the Deliverables shall perform and operate in a manner that meets or exceeds the operational, technical and functional performance levels and specifications as described in this Agreement; and

(iii) any facilities or equipment that City furnishes to Supplier in relation to this Agreement (for example, workspaces, telephones and computers) must be agreed upon by City in writing and in advance, and Supplier will use them solely to provide the Services.

10. SECURITY

(i) System, Application, Network, and Device Security

(a) Supplier shall not make any changes to City Systems and City data without City's prior review and written consent. In making any such changes, Supplier shall comply with City's internal change management process.

(b) If the Supplier is given access to a City Device, the Supplier:

(1) Shall comply with all security measures implemented by City;

(2) Shall not make any changes or modifications to bypass, or attempt to bypass, any of the security measures of any City Device;

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(3) Shall not install any application on a City Device without City's prior written consent; and

(4) Shall not remove any City Device from Canada.

(c) If Supplier is given City-issued credentials to access City's Systems, Supplier shall comply with all authentication requirements as prescribed by City, including but not limited to, minimum password lengths, password change intervals, password complexity, and multifactor authentication requirements.

(d) If Supplier is granted access to City's network through the City's VPN, Supplier must comply with all of City's authentication requirements and shall not implement VPN split tunneling.

(e) If Supplier is granted access to the City's network, Supplier shall only use the network for the purpose of performing Supplier's obligations pursuant to this Agreement and Supplier is not permitted to bypass any network security controls. City may monitor network usage and may revoke Supplier access to City Systems at any time.

(f) Supplier shall not use network discovery tools, port scanners, vulnerability assessment tools, or hacking tools of any kind.

(g) Supplier shall not attempt to forcefully gain unauthorized access to City Systems.

(h) If the City grants a Supplier Representative access to City Systems, such access is solely granted to that Supplier Representative. The credentials associated with such Supplier Representative's access to City Systems shall not be shared. Each Supplier Representative shall have a separate username and password.

(i) Supplier shall not connect any hardware to City's network without City's prior written consent.

(ii) Data Security

(a) City may monitor access to and use of City Systems and such access may be revoked by City at any time.

(b) Supplier shall not collect any data about City Systems without City's prior written consent. Any such data shall be collected solely for the purpose of performing Supplier's obligations pursuant to this Agreement and must be within the scope of the Supplier's engagement by the City. Supplier shall not collect any more data than required to fulfill its obligations pursuant to this Agreement.

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(iii) VPN

If Supplier is granted access to City's network through a Site-to-Site VPN tunnel, the tunnel configuration shall be subject to full review and approval by City and City's IT Change Advisory Board. Network communication permitted via the VPN will follow the "least privilege required principal" and will only include the minimum necessary traffic to achieve required business functionality. VPN access list shall contain specific source and destination IP addresses as well as required TCP or UDP ports.

(iv) Termination and Removal of Access

(a) City may terminate Supplier's access to City Systems at any time. If Supplier access to any City Systems have been terminated, Supplier shall not attempt to access any City System by any means, including use of knowledge gained during its engagement with City, without City's prior written consent.

(b) If a Supplier Representative who was granted access to City Systems is terminated or otherwise no longer employed by Supplier, Supplier shall give City immediate notice for City to revoke such Representative's access.

(v) Development Services

(a) If Supplier is providing software development services as part of the Agreement, the Supplier shall adhere to the NIST Secure Software Development Framework, or other another framework that is equally or more stringent.

(vi) Cyber Incident

(a) In the case of a security incident or suspected security incident, Supplier shall fully comply with a cybersecurity investigation as part of City's incident response process.

(b) If Supplier has a data breach, Supplier shall notify City immediately and comply with City's Cybersecurity breach response process.

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SCHEDULE – CHANGE ORDER FORM

CHANGE ORDER

This Change Order is made pursuant to the IT Supplier Agreement (the "**Agreement**") between The Corporation of the City of Mississauga and Supplier effective as of **[insert effective date]** . This Change Order is governed by the terms and conditions of the Agreement.

Contract Number and Description:	
New Change Order Number:	
Project Number:	
Purchase Order Number:	
Requested By:	
Department:	

CHANGE DETAILS

1) PRICING CHANGE

Original Budget Amount:	$ _____
Original Contract Price:	$ _____ **(excluding taxes)**
Previous Change Orders:	$ _____ **(excluding taxes)**
New Change Order Description:	**[insert description of change]**
New Change Order Amount:	The above mentioned contract is hereby amended by the sum of $ _____ **(excluding taxes).** HST is additional.
Revised Contract Amount:	$ _____ **(excluding taxes)**
New Account Number:	
New Change Order is within Project Budget?	☐ YES ☐ NO

2) Delivery Date Change

Reason for change in delivery dates:	**[insert brief description of reason for change]**
Original delivery dates stated by Supplier in original **[SOW/Bid/Agreement]**:	**[insert description of deliverable and original delivery date]**
Revised delivery dates:	**[insert description of deliverable and revised delivery date]**

3) Term of Contract Change

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Reason for change in Term:	
Original Term of Contract:	**[insert start date] – [insert expiry date]**
New Term of Contract:	**[insert start date] – [insert expiry date]**

4) Minor Technical Changes/Resources Changes/Scope Changes

Reason for and impact of change:	
Original contractual requirement:	
Revised contractual requirement:	

5) Contract Clause Change

Section ____ entitled "_____" of the Agreement which currently reads:
"_____"

is hereby modified to read:

"_____".

SIGNATURE

This Change Order to amend Contract Number _____ has been agreed upon and executed by the parties.

THE CORPORATION OF THE CITY OF MISSISSAUGA

Signature: _____

Name: _____

Title: _____

Date: _____

I have the authority to bind the corporation.

[INSERT SUPPLIER NAME]

Signature: _____

Name: _____

Title: _____

Date: _____

I have the authority to bind the corporation.

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SCHEDULE – CYBERSECURITY IMPACT ASSESSMENT (CIA)

[**TO BE INSERTED FROM BID**]

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SCHEDULE – PRIVACY IMPACT ASSESSMENT (PIA)

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